



Colombia

Detailed Assessment Results

I. Legal Frameworks 4.55 / 5

II. Mining policies 3.54 / 5

III. Investigation and enforcement 4.59 / 5

Total score 12.68 / 15.00



Each coloured segment represents one dimension. Grey shows remaining headroom to 15.

About this scorecard

The **Amazon Mining Policy Scoreboard**, led by Amazon Conservation Association, evaluates national gold mining governance across Amazon countries. Each country is assessed across three dimensions — **Legal Frameworks**, **Mining Policies**, and **Investigation & Enforcement** — each worth up to 5 points, for a maximum total of **15 points**. Within each dimension, five categories (each normalised 0–1) are evaluated through multiple criteria.

Colombia received a total score of **12.68 out of 15.00**, ranking **1st out of 8 Amazon countries** assessed. The pages that follow present the full set of criteria, justifications, and sources organised by dimension and category.

■ Legal Frameworks

■ Mining policies

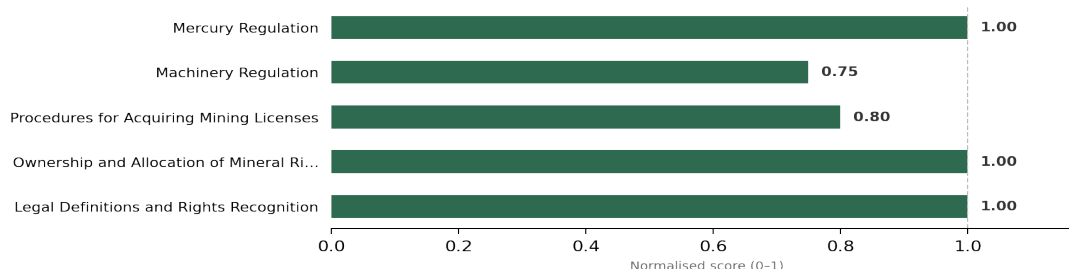
■ Investigation and enforcement

This assessment was produced by Amazon Conservation as part of the [Amazon Mining Policy Scoreboard](#), a component of [Amazon Mining Watch](#). The assessment for each country was conducted with support from, respectively: Conservación Amazonica – ACEAA (Bolivia), Instituto Centro de Vida (Brazil), Fundación para la Conservación y el Desarrollo Sostenible (Colombia), Fundación Ecociencia (Ecuador), Amazon Conservation Team (Guyana and Suriname), Conservación Amazonica – ACCA (Peru), and SOS Orinoco (Venezuela).

I. Legal Frameworks

4.55 / 5.00

Category scores



A. Legal Definitions and Rights Recognition

Score: 1.00 / 1.00

Does national legislation clearly define the legal conditions under which gold mining is permitted, and distinguish them from activities considered illegal?

1.0

Criterion 1

Justification

Colombian legislation establishes a clear and detailed legal framework that defines the conditions for legal gold mining and distinguishes it from illegal activities. Law 685 of 2001, or the Mining Code, is the main regulation governing the sector and establishes that the right to explore and exploit state-owned minerals can only be acquired through a mining concession contract duly granted and registered in the National Mining Registry [1].

Article 159 of the Mining Code classifies the illicit exploitation of mineral deposits as a crime, establishing a clear distinction between legal activities covered by a mining title and those that are not. This distinction is reinforced by Decree 1666 of 2016, which classifies mining activities as subsistence, small-scale, medium-scale, and large-scale mining, establishing specific requirements and conditions for each [2].

The criminal classification of the offense is clarified, as Article 332 of Law 599 of 2000 identifies the illegal exploitation of mineral deposits and other materials as a crime. [3]

The National Mining Agency (ANM) is the authority responsible for administering mining titles and public registries, which allows for a clear distinction between legal and illegal operations. Through its information systems, such as the National Mining Registry, the ANM provides public access to information on current mining titles, contributing to transparency and ensuring legality in the sector. [3]

Sources

[1] Law 685 of 2001 (Mining Code). Available at:

<https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=9202> [2] Decree 1666 of 2016. Available at:

<https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=77883>

[3] Law 599 of 2000 (Colombian Penal Code). Available at:

<https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=6388>

[4] National Mining Agency (ANM). Available at: <https://www.anm.gov.co/>

Does national legislation provide a clear legal definition of artisanal and small-scale mining (ASM), distinct from large-scale or industrial mining?

1.0

Criterion 2

Justification

Colombia has legislation that clearly defines artisanal and small-scale mining (ASM) and distinguishes it from large-scale mining. Decree 1666 of 2016 is the key regulation establishing this classification, defining specific criteria based on the concession area (in hectares) and the annual production volume (in grams or tons) [2].

The decree defines "Subsistence Mining" as an activity carried out by individuals or groups, limited to open-pit mining and the collection of river minerals, using only hand tools and without mechanized equipment. This definition includes traditional panning, which is also regulated in the Mining Code (Article 155) [1].

The classification by scale is established as follows:

Small-scale mining: Concessions of up to 150 hectares and production of up to 10,000 grams of precious metals per year.

The decree defines "Subsistence Mining" as an activity carried out by individuals or groups, limited to open-pit mining and the collection of river minerals, using only hand tools and without mechanized equipment. Medium-scale mining: Concessions of more than 150 and up to 5,000 hectares, with production of more than 10,000 and up to 1,000,000 grams per year.

Large-scale mining: Concessions of more than 5,000 hectares and production of more than 1,000,000 grams per year.

This detailed classification provides a clear basis for the differentiated regulation of small-scale artisanal and small-scale mining, allowing for the application of specific policies and requirements for each type of operation.

Sources

[1] Law 685 of 2001 (Mining Code). Available at:

<https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=9202>

[2] Decree 1666 of 2016. Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=77883>

Does the legal framework set distinct conditions or restrictions for mining activities in Indigenous territories, protected areas, mining exclusion zones and community lands, including provisions related to consent, well-informed prior consultation, or land tenure?

1.0

Criterion 3

Justification

The Colombian legal framework establishes specific conditions and restrictions for mining activities in indigenous territories, protected areas, and community lands. The 1991 Political Constitution, in Article 330, establishes that the exploitation of natural resources in indigenous territories must be carried out without affecting the cultural, social, and economic integrity of the communities and requires prior consultation [4].

The Mining Code, in Article 122, establishes the concept of "Indigenous Mining Zones," which are areas delimited by the mining authority within indigenous territories where communities have priority for carrying out mining activities [1]. Furthermore, Decree 1076 of 2015, which regulates the environmental sector, establishes that an environmental license cannot be granted without the formalization of prior consultation when required [5].

Constitutional Court Ruling C-418 of 2002 reaffirmed the constitutionality of Article 122 of the Mining Code, consolidating the protection of the rights of indigenous communities in the mining context [6]. Regarding protected areas, the National System of Protected Areas (SINAP) establishes restrictions and prohibitions on mining activities in

these zones, in order to protect biodiversity and ecosystems.

Sources

[1] Law 685 of 2001 (Mining Code). Available at:

<https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=9202>

[4] Political Constitution of Colombia of 1991.

[5] Decree 1076 of 2015. Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=78153>

[6] Judgment C-418 of 2002. Available at: <https://www.suin-juriscol.gov.co/viewDocument.asp?id=20025809>

B. Ownership and Allocation of Mineral Rights

Score: 1.00 / 1.00

Does the law allocate ownership rights over minerals, including gold?

1.0

Criterion 4

Justification

Colombian legislation clearly assigns property rights to minerals, including gold. The 1991 Political Constitution, in Article 332, establishes that "The State owns the subsoil and non-renewable natural resources" [4]. This provision is further developed in the Mining Code (Law 685 of 2001), which, in Article 5, reaffirms that "Minerals of any kind and location, lying in the soil or subsoil, in any natural physical state, are the exclusive property of the State" [1].

The Mining Code also establishes that state ownership of mineral resources is inalienable and imprescriptible, and that the right to explore and exploit these resources can only be acquired through a mining title granted by the State. This means that, although the State owns the minerals, it can grant private parties the right to exploit them through a concession contract.

Sources

[1] Law 685 of 2001 (Mining Code). Available at:

<https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=9202> [4] Political Constitution of Colombia of 1991.

Are there transparent and publicly accessible registries of mining titles, licenses, or concessions for ASM (mining cadastres)?

1.0

Criterion 5

Justification

Colombia maintains transparent and publicly accessible records of mining titles, including the National Mining Registry, an online system managed by the National Mining Agency (ANM) [3]. This system allows anyone to consult information on current mining titles, their location, holder, area, and status.

In addition to the Mining Registry, the Colombian Mining Information System (SIMCO) provides statistics and data on the mining sector, contributing to transparency [8]. Decree 1993 of 2002 establishes SIMCO as the official source of information for the sector, and Law 1712 of 2014 (Transparency and Access to Public Information Law) guarantees access to this information [9, 10].

These public information systems enable social oversight of the allocation of mining rights and contribute to transparency in the management of the sector.

Sources

[3] National Mining Agency (ANM). Available at: <https://www.anm.gov.co/> [8] Colombian Mining Information System (SIMCO). Available at: <https://www.simco.gov.co/> [9] Decree 1993 of 2002. Available at: <https://www.minenergia.gov.co/es/repositorio-normativo/normativa/sistema-de-informaci%C3%B3n-minera/> [10] Law 1712 of 2014. Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=56884>

Is there an official and up-to-date mining registry that includes information allowing authorities to prevent overlapping concessions with existing rights, such as other titles, protected areas, or indigenous lands?

1.0

Criterion 6

Justification

Colombia has an official and up-to-date mining registry that prevents overlapping concessions. The National Mining Registry, administered by the National Mining Agency (ANM), uses a georeferenced coordinate system that allows for the precise delimitation of mining title areas [3].

Article 16 of the Mining Code establishes the principle of "first in time, first in right," meaning that concession applications take precedence according to the order in which they are submitted [1]. Before granting a new title, the ANM conducts a verification of overlaps with existing titles, protected areas, and indigenous territories to avoid conflicts of rights.

The National Mining Registry, regulated by Article 78 of the Mining Code, is the instrument that provides publicity and authenticity to acts and contracts related to mining rights, thus guaranteeing legal certainty and preventing overlapping concessions [1].

Sources

[1] Law 685 of 2001 (Mining Code). Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=9202>
[3] National Mining Agency (ANM). Available at: <https://www.anm.gov.co/>

Is there a formalization process in place for ASM workers operating without a formal permit, license and/or concession?

1.0

Criterion 7

Justification

Colombia has established specific processes for the formalization of informal artisanal and small-scale (ASS) miners. Decree 1666 of 2016, which classifies mining by scale, is an important step in this direction, as it recognizes the existence of subsistence mining and establishes a framework for its formalization [2].

The Ministry of Mines and Energy has developed mining formalization programs that aim to integrate informal miners into the legal economy, offering technical assistance, training, and support in obtaining mining titles and environmental licenses [11]. The Mining Code also regulates artisanal and small-scale mining (barequeo) as a traditional activity that can be formalized [1].

These formalization processes are fundamental to improving the living conditions of ASS miners, reducing the environmental and social impacts of informal mining, and strengthening governance in the sector.

Sources

[1] Law 685 of 2001 (Mining Code). Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=9202> [2] Decree 1666 of 2016. Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=77883>

Decree 1666 of 2016 (classification by scales and mining formalization). Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=77883>

Law 685 of 2001 (Mining Code). Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=9202>

Ministry of Mines and Energy – National Mining Formalization Policy, 2016. Available at: https://normas.cra.gov.co/gestor/docs/resolucion_minminas_90719_2014.htm#INICIO

National Development Plan 2022–2026 “Colombia: A World Power for Life,” National Planning Department. Available at: <https://www.dnp.gov.co/plan-nacional-desarrollo/pnd-2022-2026>

C. Procedures for Acquiring Mining Licenses

Score: 0.80 / 1.00

Are there clear procedures for acquiring rights on ASM for gold?

1.0

Criterion 8

Justification

Colombia has clear and specific procedures for acquiring ASM rights. The Mining Code, in Chapter VII, establishes the procedures for submitting concession proposals, and Article 271 specifically regulates small-scale mining [1].

Decree 1666 of 2016 complements this regulation, establishing differentiated procedures for subsistence mining and small-scale mining [2]. The National Mining Agency (ANM) has published guides and manuals detailing the steps to follow to apply for a mining title and has implemented an online system for submitting applications, facilitating access to the procedures [3].

These clear and differentiated procedures are essential to promote the formalization of ASM and ensure that operations are carried out legally and responsibly.

Sources

[1] Law 685 of 2001 (Mining Code). Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=9202> [2] Decree 1666 of 2016. Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=77883> [3] National Mining Agency (ANM). Available at: <https://www.anm.gov.co/>

Is there a legal framework that requires the buyer of gold to verify its legal origin?

1.0

Criterion 9

Justification

In Colombia, the obligation to verify the legal origin of gold is established in the regulations governing the marketing of minerals. Article 112 of Law 1450 of 2011 (National Development Plan) mandated the implementation of controls on the marketing of minerals and the creation of a registry of authorized agents. To comply with this, Decree 276 of 2015 (later incorporated into Single Decree 1073 of 2015) regulated the Single Registry of Mineral Traders (RUCOM) and the use of the Certificate of Origin. Consequently, since 2015, all gold buyers must ensure that the mineral comes from an authorized miner or trader and has a certificate of origin, in accordance with current mining regulations. Thus, anyone who buys gold, whether formally or informally, can only acquire it from accredited legal sources, under penalty of engaging in illicit trade.

Sources

Are specific environmental licensing procedures established for ASM, including simplified or tailored requirements?

1.0

Criterion 10

Justification

In Colombia, there are differentiated procedures for environmental licensing of small-scale mining, but these are not yet fully simplified or adapted to the technical and economic capacities of artisanal and small-scale (ASM) miners.

Decree 1076 of 2015, Article 2.2.2.3.1.2, establishes the competent environmental authorities for granting licenses, including the National Environmental Licensing Authority (ANLA), the Regional Autonomous Corporations (CARs), and the Sustainable Development Corporations, which may delegate this function to territorial entities with sufficient technical and administrative capacity. In the case of metallic mining, an environmental license is required when the projected removal of useful and waste material exceeds 2,000,000 tons per year, which excludes most artisanal and small-scale mining operations.

Despite this threshold and the existence of decentralized powers, the environmental procedures applicable to artisanal and small-scale mining (ASM) remain complex, with technical and economic requirements that are difficult for small-scale producers to meet. Regional Autonomous Corporations (CARs) have implemented simplified assessment mechanisms and some support programs, but these are not standardized nationally nor do they constitute a formal simplified regime.

The Ministry of Environment and Sustainable Development has issued guidance documents, such as the Environmental Guide for the Formalization of Subsistence Mining (2020), which seeks to adapt environmental requirements, although more specific regulations are still needed to facilitate the effective environmental formalization of ASM.

Sources

Decree 1076 of 2015 (Single Regulatory Decree for the Environment and Sustainable Development Sector), Article 2.2.2.3.1.2. Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=78153>

Ministry of Environment and Sustainable Development. "Environmental Guide for the Formalization of Subsistence Mining," 2020. Available at: <https://www.minambiente.gov.co/wp-content/uploads/2021/02/guia-formalizacion-mineria-subsistencia.pdf>

National Environmental Licensing Authority – ANLA. Available at: <https://www.anla.gov.co/>

Is there a national, regional, or state government entity that oversees compliance with the implementation of artisanal and small-scale mining (ASM) operations' commitments in accordance with mining environmental licenses?

1.0

Criterion 11

Justification

In Colombia, the monitoring of compliance with environmental licenses by artisanal and small-scale miners (ASM) is the responsibility of several institutions, depending on the type of mining, the project's location, and the authority that granted the license.

The National Environmental Licensing Authority (ANLA) is responsible for granting, controlling, and monitoring environmental licenses for large-scale mining projects or those that extend beyond the boundaries of a single

department. However, in the case of artisanal and small-scale mining, jurisdiction falls primarily to regional environmental authorities, such as the Regional Autonomous Corporations (CARs), the Sustainable Development Corporations (CDSs), and the Urban Environmental Authorities, in accordance with Law 99 of 1993. On the other hand, the National Mining Agency (ANM) monitors the legality of mining operations, ensuring that miners have a valid mining title or contract and that they comply with the requirements established in the Mining Code (Law 685 of 2001) and in Decree 1666 of 2016, which regulates the formalization of small-scale mining.

Sources

Law 99 of 1993 (National Environmental System – SINA);

Law 685 of 2001 (Mining Code);

Decree 1666 of 2016 (Mining Formalization);

Are mining concessions or licenses granted for a fixed period with mandatory reassessment before extension? *0.5 may be given in cases where the reassessment is mandatory, even when there is no fixed period for the mining concession

0.0

Criterion 12

Justification

Colombia establishes a general term of thirty (30) years for mining concession contracts, counted from the date of registration of the contract in the National Mining Registry. Before the expiration of this period, the concession holder may request an extension for up to an additional thirty (30) years, which will be formalized through a document signed by the parties and registered in the same Registry. At the end of the extension, the concession holder will have priority to contract the same area again and continue mining operations, which must not be suspended while the new contract is being finalized.

Regarding artisanal and small-scale mining (ASM), the formalization regulations, governed by Decree 1949 of 2017, Article 2.2.5.4.2.7, paragraph d, stipulate that the Mining Formalization Subcontract will be signed for a period of no less than four (4) years, renewable successively with the prior approval of the National Mining Authority, without exceeding the validity of the main mining title.

Sources

Law 685 of 2001

Decree 1666 of 2016

Decree 1949 of 2017

D. Machinery Regulation

Score: 0.75 / 1.00

Is the use of machinery in ASM subject to regulation and licensing?

1.0

Criterion 13

Justification

The use of machinery in artisanal and small-scale mining (ASM) in Colombia is subject to clear regulations. Decree 1666 of 2016 establishes a fundamental distinction between subsistence mining, which is limited to hand tools, and small-scale mining, which may use machinery [2].

The Mining Code also regulates panning as a strictly manual activity [1]. To use machinery, miners must obtain a small-, medium-, or large-scale mining title and an environmental license authorizing the use of mechanized

equipment. Regulating the use of machinery is a key element in controlling the environmental impacts of mining and in differentiating between the various scales of operation.

Sources

[1] Law 685 of 2001 (Mining Code). Available at:

<https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=9202> [2] Decree 1666 of 2016. Available at:

<https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=77883>

Are environmental impact assessments (EIAs) required for mechanized ASM operations?

1.0

Criterion 14

Justification

In Colombia, conducting an Environmental Impact Assessment (EIA) is mandatory for all mechanized mining operations, regardless of scale, as stipulated in Decree 1076 of 2015, which regulates environmental licensing in the country.

This decree establishes that all mining activities using machinery or mechanized equipment require a prior environmental license, and that an EIA is an essential requirement for granting it. This requirement applies to both medium- and large-scale mining, as well as to mechanized artisanal and small-scale mining (ASM), which is distinguished from artisanal mining precisely by the use of machinery.

Resolution 1402 of 2018, issued by the Ministry of Environment and Sustainable Development (MinAmbiente), adopts the general methodology for the preparation and submission of environmental studies, including EIAs. This methodology defines the minimum content, technical procedures, and impact assessment tools for the use of machinery in mining activities.

The Regional Autonomous Corporations (CAR) are the competent authorities to evaluate and approve the EIAs of smaller-scale projects, while the National Environmental Licensing Authority (ANLA) retains competence over larger-scale projects.

Sources

[5] Decree 1076 of 2015. Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=78153>

[14] Resolution 1402 of 2018.

Are there governmental controls on the import, sale, or leasing of mining machinery?

0.5

Criterion 15

Justification

Government controls exist on the importation of mining machinery, primarily through customs controls by the National Directorate of Taxes and Customs (DIAN) [16]. However, there are no specific and systematic controls on the sale and leasing of mining machinery domestically.

The lack of a national registry of mining machinery makes it difficult to track equipment once it enters the country, which can facilitate its use in illegal activities. While general regulations exist for the importation of industrial machinery, there is no specific framework for mining machinery that would allow for effective control of its sale and use.

Sources

[16] National Directorate of Taxes and Customs (DIAN). Available at: <https://www.dian.gov.co/>

Is there a national or subnational registry for heavy machinery used in mining?

1.0

Criterion 16

Justification

Colombia has implemented a national registry for heavy machinery used for agricultural, industrial, and construction purposes, as well as in small-scale gold mining operations. Resolution No. 1068/2015 of the Ministry of Transportation requires that heavy machinery be registered in the National Transit Registry (RUNT System) and equipped with GPS tracking devices. This measure was adopted following a presidential decree the previous year (Decree No. 723/2014), which established a series of actions to combat illegal mining as part of a regional plan by the Andean countries aimed at suppressing this activity through increased import controls and other measures. In addition, Colombia has been using various technological tools, such as satellite imagery, remote sensing, and GPS, to track machinery operating illegally in areas without mining authorization.

Sources

Resolution No. 1068/2015 of the Ministry of Transport

Decree No. 723/2014

Are there transparent and publicly accessible registries or databases of licenses or permits granted for the use of machinery in ASM operations?

0.0

Criterion 17

Justification

In Colombia, there are no public and transparent registries or databases regarding licenses or permits for the use of machinery in artisanal and small-scale mining (ASM) operations. Information on the machinery authorized in an environmental license is neither systematized nor easily accessible to the public.

This lack of transparency hinders social oversight of machinery use and verification of compliance with the conditions of environmental licenses. Creating a public database of the machinery authorized for each mining project would be an important step toward improving transparency and oversight in the sector.

Sources

Research on websites of the National Mining Agency and the National Environmental Licensing Authority.

Are operators required to equip heavy machinery with GPS or other tracking devices for monitoring purposes?

1.0

Criterion 18

Justification

Resolution No. 1068/2015 of the Ministry of Transportation requires that all heavy machinery be registered in the National Transit Registry (RUNT System) and have a GPS device installed for tracking purposes.

According to proponents of the machinery registration, this measure could strengthen public oversight of equipment use by miners extracting gold in unauthorized or restricted areas, as well as improve monitoring of those using machinery that is different from, and potentially more harmful to the environment than, previously authorized.

The registry could operate using common licensing parameters or through GPS technology, thus enabling real-time geospatial monitoring.

Sources

Resolution No. 1,068/2015 of the Ministry of Transport

Is mercury import, sale, and use regulated under national law?

1.0

Criterion 19

Justification

Colombia has comprehensive regulations governing mercury, covering its import, sale, and use. Law 1658 of 2013 is the primary legislation establishing provisions for the marketing and use of mercury in the country, with the aim of protecting human health and the environment [17].

The law establishes a Mercury User Registry, administered by the Ministry of Environment and Sustainable Development, which allows for monitoring and control of the entire mercury supply chain, from import to final use. In addition, INVIMA (National Institute for Food and Drug Surveillance) controls the import of mercury and products containing it.

Sources

[17] Law 1658 of 2013. Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=53781>

Are there specific restrictions or bans on mercury use in ASM?

1.0

Criterion 20

Justification

In Colombia, the use of mercury in mining is completely prohibited. Law 1658 of 2013 established a five-year transition period for the mining sector, especially artisanal and small-scale mining (ASM), to adapt and migrate to cleaner technologies. This period ended on July 15, 2018, at which point the prohibition became total, definitive, and without exceptions throughout the national territory.

Prior to this law, Resolution 1402 of 2006 from the then Ministry of Environment, Housing, and Territorial Development had already established restrictions and technical guidelines to reduce the use of mercury in gold mining. Law 1658 consolidated and expanded these measures, establishing administrative and economic sanctions for those who violated the prohibition.

Additionally, the Colombian Penal Code, through Article 338A incorporated by Law 2111 of 2021, criminalizes the use, production, sale, or possession of mercury, strengthening control and enforcement mechanisms.

These provisions position Colombia as one of the first countries in Latin America to implement a total ban on mercury in mining, in line with the commitments made under the Minamata Convention on Mercury, ratified by Law 1892 of 2018.

Sources

Law 1658 of 2013 (establishing provisions for the reduction and elimination of mercury use in productive activities). Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=53781>

Resolution 1402 of 2006 (Ministry of Environment, Housing and Territorial Development – ■■restrictions on mercury use). Available at: <https://www.alcaldiabogota.gov.co/sisjur/normas/Norma1.jsp?i=20837>

Law 2111 of 2021 (amending the Penal Code and introducing Article 338A on the illicit use of mercury). Available at: <https://www.suin-juriscol.gov.co/viewDocument.asp?ruta=Leyes/30042065>

Law 1892 of 2018 (which approves the Minamata Convention on Mercury). Available at: <https://www.suin-juriscol.gov.co/viewDocument.asp?ruta=Leyes/30035032>

Is there a system for tracking the origin, distribution, and final use of mercury?

1.0

Criterion 21

Justification

Colombia has a system for tracking mercury through the Mercury User Registry, established by Law 1658 of 2013 [17]. This registry, managed by the Ministry of Environment, allows for the monitoring of the entire mercury supply chain, from its importation to its final use.

In addition, the DIAN (National Tax and Customs Directorate) controls mercury imports, and only duly registered and authorized companies can import and trade this substance. This tracking system is essential for controlling the illegal trade of mercury and ensuring compliance with the ban on its use in mining.

Sources

[17] Law 1658 of 2013. Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=53781>

Are there procedures in place for the seizure, transport, and final disposal of confiscated mercury, especially following operations against illegal gold mining?

1.0

Criterion 22

Justification

Colombia has regulatory frameworks and technical guidelines that govern the seizure, transport, and final disposal of confiscated mercury; however, there are no standardized operating procedures or uniform implementation throughout the country.

Law 1658 of 2013 established the obligation to eliminate the use of mercury and to guarantee the environmentally sound final disposal of confiscated stockpiles. Subsequently, the Ministry of Environment and Sustainable Development (MinAmbiente) developed several technical guidelines for the management of hazardous chemicals, including mercury, such as the "Guide for the Responsible Management of Mercury" (ARM, 2018), the "Guide for the Management and Storage of Mercury" (UNEP, 2017), and the "Guide for the Management of 25 Chemical Substances" (MinAmbiente, 2021). These guidelines provide technical criteria for the temporary storage, safe transport, and final disposal of seized mercury.

In practice, the National Police and the DIJIN (Directorate of Criminal Investigation and Interpol) apply internal protocols for the chain of custody and transport of hazardous materials, but there is no unified national manual or mandatory inter-institutional protocol. This creates gaps in coordination and operational capacity, especially in mining areas where institutions lack the infrastructure for temporary storage and safe final disposal.

Therefore, although regulatory and technical guidelines exist, challenges remain in the effective implementation, inter-institutional coordination, and territorial coverage of these procedures.

Sources

Law 1658 of 2013 (which establishes provisions for the reduction and elimination of mercury use). Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=53781>

Ministry of Environment and Sustainable Development – ■■■Chemicals Platform, Documents on Mercury: <https://quimicos.minambiente.gov.co/mercurio-documentos/>

United Nations Environment Programme (UNEP). Guide for the management and storage of mercury, 2017. Available

at: <https://www.unep.org/globalmercurypartnership/resources/guidance/guia-para-el-manejo-y-almacenamiento-de-mercurio>

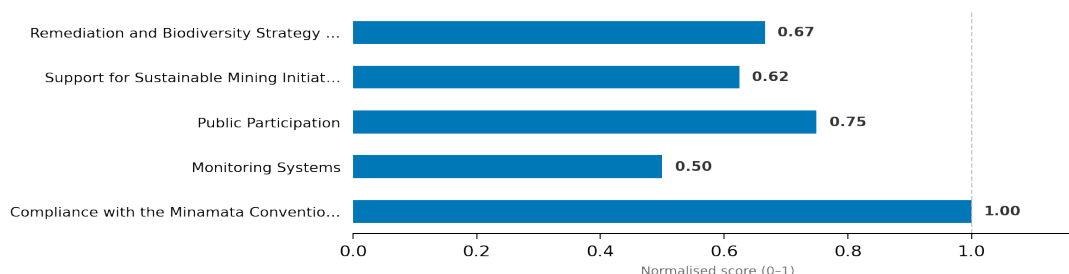
Alliance for Responsible Mining (ARM). *Guide for the Responsible Management of Mercury*, 2018. Available at: https://www.responsiblemines.org/wp-content/uploads/2018/08/Gu%C3%ADa-para-el-manejo-responsable-del-mercurio_vf.pdf

Ministry of Environment and Sustainable Development. *Guide for the Management of 25 Hazardous Chemicals*, 2021. Available at: https://www.minambiente.gov.co/wp-content/uploads/2021/10/guia_manejo_25_sustancias_quimicas.pdf

II. Mining policies

3.54 / 5.00

Category scores



F. Compliance with the Minamata Convention on Mercury

Score: 1.00 / 1.00

Is the country a signatory or Party to the Minamata Convention on Mercury?

1.0

Criterion 23

Justification

Colombia is a signatory and Party to the Minamata Convention on Mercury. The country signed the convention on October 10, 2013, and ratified it through Law 1892 of 2018 [18]. The ratification was deposited on August 26, 2019, and the convention entered into force for Colombia on November 26, 2019.

Colombia's accession to the Minamata Convention demonstrates its commitment to protecting human health and the environment from the effects of mercury and strengthens national policies to eradicate its use in mining.

Sources

[18] Law 1892 of 2018. Available at: <https://www.suin-juriscol.gov.co/viewDocument.asp?ruta=Leyes/30035032>

Has the country ratified the Minamata Convention?

1.0

Criterion 24

Justification

Colombia ratified the Minamata Convention on August 26, 2019, after having approved it through Law 1892 of 2018 [18]. This ratification formalizes the country's commitment to the provisions of the convention and obliges it to implement the necessary measures to reduce and eliminate the use of mercury.

Sources

[18] Law 1892 of 2018. Available at: <https://www.suin-juriscol.gov.co/viewDocument.asp?ruta=Leyes/30035032>

Has the country submitted an initial assessment report as part of its participation in the Convention?

1.0

Criterion 25

Justification

Colombia has submitted its Initial Assessment Report (Minamata Initial Assessment – ■■■MIA), fulfilling its obligations as a State Party to the Minamata Convention on Mercury.

The Ministry of Environment and Sustainable Development (MinAmbiente) led the preparation of the MIA with technical support from the United Nations Environment Programme (UNEP) and funding from the Global Environment Facility (GEF). This report includes a national assessment of mercury emission and release sources, existing regulations, institutional capacities, and the needs for implementing the Convention.

The submission of the MIA was confirmed by the Minamata Convention Secretariat, which officially lists Colombia among the countries that have completed and submitted their initial assessment, available on the Convention's official website.

Sources

Minamata Convention on Mercury – Initial Assessments: Colombia. Available at: <https://minamataconvention.org/es/minamata-convention-initial-assessments-colombia>

Has the country developed and submitted a National Action Plan (NAP) on mercury in accordance with the Convention?

1.0

Criterion 26

Justification

Colombia has developed and officially submitted its National Action Plan (NAP) to reduce and, where possible, eliminate the use of mercury in artisanal and small-scale gold mining (ASM), in compliance with the provisions of the Minamata Convention on Mercury.

Colombia's NAP, finalized and published in 2024, was developed by the Ministry of Environment and Sustainable Development (MinAmbiente) with technical support from the United Nations Environment Programme (UNEP) and funding from the Global Environment Facility (GEF). This plan establishes a strategic and operational framework to address the impacts of mercury in ASM, including measures for reduction, control, and phase-out, as well as strategies for institutional strengthening, mining formalization, environmental monitoring, and public health.

The Minamata Convention Secretariat confirms the receipt and publication of the document on its official website, thus solidifying Colombia's compliance with this international obligation.

Sources

Minamata Convention on Mercury – National Action Plans. Colombia – National Action Plan on Mercury in Small-Scale Mining and Agriculture, 2024. Available at: https://minamataconvention.org/sites/default/files/documents/national_action_plan/Colombia-ASGM-NAP-2024-SP.pdf

Does the NAP explicitly mention forests or forest ecosystems in the context of mercury reduction strategies?

1.0

Criterion 27

Justification

The National Action Plan (NAP) on mercury in artisanal and small-scale gold mining in Colombia (2024) explicitly addresses forest and jungle ecosystems, both directly and indirectly, within the framework of its strategies for reducing emissions, releases, and exposure risks.

In Strategy 3, entitled “Reduction of Emissions, Releases, and Exposure Risks,” the NAP includes the activity of “Mapping and Monitoring Mercury-Contaminated Sites in Areas of Influence of Artisanal and Small-Scale Gold Mining.” Given that much of this mining activity occurs in jungle, riverine, and forest ecosystems, this action necessarily involves assessing the impact of mercury on soils, rivers, and sediments within these ecosystems.

Likewise, Strategy 5, “Strategy Against the Illicit Exploitation of Minerals,” addresses one of the main direct causes of deforestation in Colombia. This strategy includes measures such as “strengthening investigative capacity” and “increasing efforts to combat and eradicate illegal mining,” which directly contribute to forest protection and reducing deforestation associated with illegal gold mining.

Therefore, the National Action Plan (PAN) integrates the forestry dimension across all its components, both in mitigating the impacts of mercury on ecosystems and in preventing forest cover loss resulting from illegal mining, fully meeting the evaluated criteria.

Sources

National Action Plan on Mercury in Small-Scale Gold Mining – Colombia (2024). Available at: https://minamataconvention.org/sites/default/files/documents/national_action_plan/Colombia-ASGM-NAP-2024-SP.pdf

Ministry of Environment and Sustainable Development – ■■■Minamata Convention Implementation Project in Colombia. Available at: <https://quimicos.minambiente.gov.co/mercurio-documentos/>

Minamata Convention on Mercury – National Action Plans. Available at: <https://minamataconvention.org>

Does the NAP specifically refer to the Amazon region in its analysis, objectives, or proposed actions?

1.0

Criterion 28

Justification

The National Action Plan (NAP) on Mercury in Artisanal and Small-Scale Gold Mining in Colombia (2024) specifically and directly mentions the Amazon region, both in its diagnostic assessment and its action strategies.

In its initial diagnostic assessment, the NAP identifies the Colombian Amazon as one of the main regions affected by gold mining using mercury, highlighting the departments of Putumayo, Guainía, Vaupés, and northern Amazonas as areas of high environmental and social vulnerability due to water pollution, deforestation, and the impact on Indigenous communities.

The most compelling evidence is found in Strategy 5, entitled “Strategy against Illegal Mining,” which includes Activity IV, section c, where the action of:

“Coordinating the actions of the Action Plan for the Prevention, Control, and Mitigation of Illegal Mining in Indigenous Territories of the Colombian Amazon” is expressly established.

This provision demonstrates that the PAN not only mentions the Amazon region, but also incorporates it as an explicit focus of priority intervention within its measures to combat illegal mining, protect forest ecosystems and reduce the use of mercury.

Sources

National Action Plan on Mercury in Small-Scale Gold Mining – Colombia (2024). Available at: https://minamataconvention.org/sites/default/files/documents/national_action_plan/Colombia-ASGM-NAP-2024-SP.pdf

Ministry of Environment and Sustainable Development – ■■■Minamata Convention Implementation Project in Colombia. Available at: <https://quimicos.minambiente.gov.co/mercurio-documentos/>

Minamata Convention on Mercury – National Action Plans. Available at: <https://minamataconvention.org>

Does the NAP take into account intersectional approaches?

1.0

Criterion 29

Justification

The National Action Plan (NAP) on Mercury in Artisanal and Small-Scale Gold Mining in Colombia (2024) integrates intersectional approaches into its diagnosis, strategies, and actions. The document recognizes the different forms of vulnerability associated with mercury exposure, taking into account the dimensions of gender, age, ethnicity, and territory.

In its situational analysis, the NAP identifies the differentiated impacts of mercury on women, Indigenous communities, Afro-Colombian communities, and rural populations. It notes that women involved in artisanal and small-scale gold mining (ASGM)—particularly in amalgamation and processing activities—face greater risks due to direct exposure and their role in family health care.

Likewise, the plan promotes a gender and social inclusion approach, incorporated across all action strategies. Strategy 3 (“Reduction of Emissions, Releases, and Exposure Risks”) establishes the need to design awareness and environmental education programs with a differential approach, targeting vulnerable communities. Strategy 4 (“Capacity building and knowledge generation”) proposes training women miners in mercury-free practices and community leadership.

Sources

National Action Plan on Mercury in Small-Scale Gold Mining – Colombia (2024). Available at: https://minamataconvention.org/sites/default/files/documents/national_action_plan/Colombia-ASGM-NAP-2024-SP.pdf

Ministry of Environment and Sustainable Development – ■■■Minamata Convention Implementation Project in Colombia. Available at: <https://quimicos.minambiente.gov.co/mercurio-documentos/>

Minamata Convention on Mercury – National Action Plans. Available at: <https://minamataconvention.org>

G. Monitoring Systems

Score: 0.50 / 1.00

Are there government-led monitoring systems for environmental and social impacts of ASM?

0.5

Criterion 30

Justification

Colombia has government-led environmental monitoring systems, but these are not specifically designed to assess the impacts of artisanal and small-scale mining (ASM). The Institute of Hydrology, Meteorology and Environmental Studies (IDEAM) manages the Forest and Carbon Monitoring System (SMByC), which monitors deforestation and can detect mining activities, but does not specifically assess the social impacts of ASM [5]. The Regional Autonomous Corporations (CARs) monitor environmental licenses, but generally for all mining projects, not specifically for ASM.

Sources

1. Decree 1655 of 2017

•URL: <https://www.minambiente.gov.co/wp-content/uploads/2021/08/decreto-1655-de-2017.pdf>

•Establishes the Forest and Carbon Monitoring System (SMByC)

2. IDEAM - SMByC

•URL:

<https://www.ideam.gov.co/nuestra-entidad/ecosistemas-e-informacion-ambiental/sistema-monitoreo-bosques-carbono>

•Deforestation and Forest Change Monitoring System

LIMITATIONS IDENTIFIED:

- Monitoring systems not specific to artisanal and small-scale mining (ASM)
- Lack of comprehensive social impact assessment
- Fragmented monitoring among different institutions

Is satellite or geospatial monitoring used to detect illegal or unlicensed ASM activities?

1.0

Criterion 31

Justification

Yes. Colombia continuously uses satellite and geospatial monitoring systems to detect and track illegal or unauthorized mining activities, including those related to artisanal and small-scale mining (ASM).

The Institute of Hydrology, Meteorology and Environmental Studies (IDEAM) operates the Forest and Carbon Monitoring System (SMByC), which generates quarterly and annual deforestation alerts by analyzing medium- and high-resolution satellite imagery (Landsat, Sentinel, Planet). These alerts allow for the identification of forest cover loss patterns associated with illegal mining, especially in the Amazon region. The results are shared with the Ministry of Environment and Sustainable Development, the Attorney General's Office, and the Armed Forces, supporting environmental and judicial enforcement operations.

The Colombian Mining Information System (SIMCO), managed by the Ministry of Mines and Energy and the National Mining Agency (ANM), integrates georeferenced information on mining titles, pending applications, and excluded or restricted areas. This database allows for cross-referencing information with satellite imagery to detect unlicensed activities or activities outside authorized areas.

Decree 1993 of 2002 establishes SIMCO as the official mining information system, mandating the continuous updating of the sector's maps and geospatial records. In practice, this data is used by the Organized Crime Command of the Ministry of National Defense in surveillance operations such as Operation Artemis, which focuses on the satellite detection and dismantling of illegal mining operations.

Additionally, the Alluvial Gold Mining Report (EVOA), prepared by the United Nations Office on Drugs and Crime (UNODC) under a cooperation agreement with the Government of Colombia, is a fundamental source of geospatial monitoring. This report is developed in coordination with the Ministry of Mines and Energy and the Ministry of Environment and Sustainable Development, and uses satellite imagery and geospatial analysis to identify and classify alluvial gold mining areas throughout the country.

Sources

IDEAM – Forest and Carbon Monitoring System (SMByC). Available at:

<https://www.ideam.gov.co/nuestra-entidad/ecosistemas-e-informacion-ambiental/sistema-monitoreo-bosques-carbono>

SIMCO – Colombian Mining Information System. Available at: <https://www.simco.gov.co/>

Decree 1993 of 2002 (which establishes SIMCO as the official mining information system). Available at:

<https://minenergia.gov.co/es/repositorio-normativo/normativa/sistema-de-informaci%C3%B3n-minera/>

UNODC – Alluvial Gold Mining Assessment Report (EVOA), in coordination with the Government of Colombia.

Available at: https://www.datos.gov.co/Minas-y-Energ-a/Explotaci-n-de-Oro-de-Aluvi-n-EVOA-por-Departament/ub8r-2956/about_data

Can governmental satellite monitoring systems distinguish between artisanal, semi-mechanized, and mechanized mining activities?

0.0

Criterion 32

Justification

Governmental satellite and geospatial monitoring systems in Colombia lack the technical capacity to automatically distinguish between artisanal, semi-mechanized, and mechanized mining activities based solely on satellite imagery.

The IDEAM Forest and Carbon Monitoring System (SMBYC) identifies changes in forest cover and detects vegetation loss associated with gold mining, especially in regions such as the Amazon, Chocó, and Bajo Cauca. However, the system focuses on detecting disturbed areas rather than on the technical characterization of mining activity.

Similarly, reports derived from satellite analysis, such as the Alluvial Gold Mining Report (EVOA) prepared by the UNODC in cooperation with the Ministry of Mines and Energy and the Ministry of Environment, identify the extent of affected areas and the spatial patterns of mining, but require field verification or manual interpretation to differentiate between artisanal, semi-mechanized, and mechanized mining.

To date, Colombia does not have automated algorithms or national platforms that integrate technical indicators (e.g., type of machinery, size of infrastructure or removal density) that allow the classification of the operational scale of mining based on satellite analysis.

Sources

Institute of Hydrology, Meteorology and Environmental Studies (IDEAM) – Forest and Carbon Monitoring System (SMBYC). Available at:

<https://www.ideam.gov.co/nuestra-entidad/ecosistemas-e-informacion-ambiental/sistema-monitoreo-bosques-carbono>

UNODC – Alluvial Gold Mining Report (EVOA), in coordination with the Government of Colombia. Available at: https://www.datos.gov.co/Minas-y-Energ-a/Explotaci-n-de-Oro-de-Aluvi-n-EVOA-por-Departament/ub8r-2956/about_data

Is mercury concentration measured by the government in potentially affected water bodies, the food chain and/or populations?

0.5

Criterion 33

Justification

The Colombian government conducts mercury measurements, but these are limited, unsystematic, and have partial coverage. While there are significant institutional efforts, an integrated and continuous national monitoring system encompassing various environmental matrices (water, air, soil, food) and the effects on human health is still lacking.

The National Institute of Health (INS) has conducted epidemiological and biomonitoring studies in mining and riverine populations in regions such as Antioquia, Bolívar, Chocó, and Cauca, revealing high levels of mercury in blood and hair. However, these studies have been carried out sporadically and without a set schedule, thus failing to constitute a sustained national surveillance network.

The Institute of Hydrology, Meteorology and Environmental Studies (IDEAM), along with some Regional Autonomous Corporations (CARs), conducts water quality monitoring that includes mercury measurements in basins affected by gold mining (for example, the Atrato, Magdalena, and Caquetá rivers). Despite this, the reports are fragmented, heterogeneous, and dependent on regional operational capacity.

The National Action Plan (NAP) on Mercury in Small-Scale Mining (SAM), developed by the Ministry of Environment and Sustainable Development (MinAmbiente) in compliance with the Minamata Convention, itself acknowledges this institutional weakness. In its Strategy 3 (Emissions Reduction), the NAP proposes “mapping and monitoring mercury-contaminated sites” and “conducting studies on the presence of mercury in environmental matrices.”

Likewise, Strategy 9 (Public Health) proposes “monitoring the reporting of mercury poisoning cases” and consolidating information to identify exposed populations.

These actions demonstrate official recognition of the problem and a commitment to moving toward a more structured inter-institutional monitoring system, although its implementation is still underway.

Sources

1. National Institute of Health

•URL: <https://www.ins.gov.co/>

•Conducts epidemiological studies on mercury exposure

2. Institute of Hydrology, Meteorology and Environmental Studies (IDEAM) – Water quality reports and mercury monitoring.

<https://www.ideam.gov.co>

Regional Autonomous Corporations (CARs) – Regional monitoring (CORANTIOQUIA, CODECHOCÓ, CORPOAMAZONIA).

3. Ministry of Environment and Sustainable Development (MinAmbiente) – National Action Plan for Artisanal and Small-Scale Mining (PAN-Mercury), Strategies 3 and 9.

<https://www.minambiente.gov.co>

H. Public Participation

Score: 0.75 / 1.00

Are there legal channels for civil society oversight or participation in monitoring and enforcement?

1.0

Criterion 34

Justification

Colombia has multiple legal channels for civil society participation in monitoring and oversight. The 1991 Constitution establishes the right to citizen participation, and Law 134 of 1994 regulates the mechanisms for citizen participation [8]. Citizen oversight committees are regulated by Law 850 of 2003, which allows citizens to monitor public administration [9]. Furthermore, Law 1712 of 2014 guarantees access to public information [10].

The Escazú Agreement (approved in Colombia by Law 2273 of 2022) strengthens and expands the existing legal channels in the country. It provides three fundamental pillars: 1. Access to Environmental Information 2. Public Participation in Environmental Decisions 3. Access to Justice and Protection for Environmental Defenders

Sources

1. Law 134 of 1994

•URL: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=330>

•Regulates mechanisms for citizen participation

2. Law 850 of 2003

•URL: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=10570>

•Regulates citizen oversight committees

3. Law 1712 of 2014

•URL: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=56884>

•Law on Transparency and Access to Public Information

SPECIFIC PROVISIONS:

- Constitutional right to citizen participation
- Legally recognized citizen oversight committees
- Guaranteed access to public information

4. [https://www.suin-juriscol.gov.co/viewDocument.asp?ruta=Leyes/30044823#:~:text=\(24\)%20folios.,PROYECTO%20DE%20LEY,4%20de%20marzo%20de%202018](https://www.suin-juriscol.gov.co/viewDocument.asp?ruta=Leyes/30044823#:~:text=(24)%20folios.,PROYECTO%20DE%20LEY,4%20de%20marzo%20de%202018).

Is there an official, accessible, safe, and functional channel for individuals or communities to file complaints related to ASGM activities or associated environmental impacts?

1.0

Criterion 35

Justification

Yes. Colombia has several official, accessible, and secure channels for reporting artisanal and small-scale mining (ASM) activities or their environmental impacts, managed by justice, oversight, and environmental agencies.

The Attorney General's Office has an Environmental Unit that receives reports of illegal mining, pollution, or mercury trafficking through the 122 hotline, the citizen portal, and local offices.

The Office of the Inspector General offers the Online Complaints and Reports System (www.procuraduria.gov.co), which guarantees confidentiality and digital tracking. The National Environmental Licensing Authority (ANLA) has an online form (www.anla.gov.co/denuncias-ambientales), and the Regional Autonomous Corporations (CARs) handle reports of environmental damage or illegal mining through their institutional websites (e.g., CORPOAMAZONIA). The National Mining Agency (ANM) receives alerts about irregular or unlicensed activities through its Citizen Service System (SAC) (www.anm.gov.co).

Finally, the Ministry of Environment maintains the national hotline 01 8000 11 3340 to combat wildlife trafficking, and the National Police allows environmental complaints to be filed through the 123 hotline or the "ADenunciar" app.

Together, these channels guarantee citizen access, confidentiality, and traceability of environmental complaints, including those related to artisanal and small-scale mining (ASM).

Sources

1. Office of the Attorney General of Colombia
 - URL: <https://www.procuraduria.gov.co/>
 - Online complaints and reports system
2. Office of the Attorney General of Colombia
 - URL: <https://www.fiscalia.gov.co/>
 - Receiving reports of environmental crimes
3. National Environmental Licensing Authority (ANLA)
 - URL: <https://www.anla.gov.co/>
 - Citizen services system

Are there processes for public consultation with affected communities in mining-related decisions?

1.0

Criterion 36

Justification

Colombia has mandatory public consultation processes for mining decisions. Prior consultation for Indigenous and Afro-Colombian communities is established in the Constitution and regulated by Decree 1320 of 1998 [14]. For

environmental licenses, Decree 1076 of 2015 establishes processes for citizen participation and public hearings [15]. Law 99 of 1993 also establishes mechanisms for participation in environmental decisions [16].

Sources

1. Decree 1320 of 1998

•URL: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=1392>

•Regulates prior consultation

2. Decree 1076 of 2015

•URL: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=78153>

•Establishes citizen participation in environmental licensing

3. Law 99 of 1993

•URL: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=297>

•Mechanisms for participation in environmental decisions

Are civil society complaints taken into account in the authorization or assessment processes of mining projects?

1.0

Criterion 37

Justification

Complaints and observations from civil society are considered in mining and environmental authorization processes in Colombia. Decree 1076 of 2015 establishes that environmental authorities must consider citizen observations in the environmental licensing evaluation process [15]. Law 1437 of 2011 (Administrative Procedure Code) establishes the right to participate in administrative proceedings [17].

Sources

1. Decree 1076 of 2015

•URL: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=78153>

•Consideration of citizen observations in licensing

2. Law 1437 of 2011

•URL: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=41249>

•Code of Administrative Procedure and Administrative Litigation

Do national programs on ASM include specific measures to support the participation of women, Indigenous peoples, or traditional communities?

0.0

Criterion 38

Justification

National programs on artisanal and small-scale mining (ASM) in Colombia include some elements of a differential approach, but not comprehensively. Law 2250 of 2022 recognizes traditional mining and establishes differentiated procedures, but does not include specific, detailed measures for women, Indigenous peoples, or traditional communities [1]. Some programs, such as the Better Gold Initiative, include criteria for gender equity and community participation, but they are not official national programs [2].

Sources

1. Law 2250 of 2022

•URL: <https://www.alcaldiabogota.gov.co/sisjur/normas/Norma1.jsp?i=125438>

•Recognizes traditional mining but without detailed specific measures

2. Better Gold Initiative

•URL: <https://ororesponsable.org/>

•Includes gender equity criteria

LIMITATIONS IDENTIFIED:

•Lack of comprehensive specific measures

- Limited differential approach in national programs
 - Need for greater inclusion of vulnerable groups
- [Sections J, K, L, and M will continue in the next segment of the analysis]

Are there protocols for the care and protection of victims and witnesses of crimes related to or derived from illegal mining? *0.5 may be given in cases there are general protection of witnesses and victims programs, but not specific for illegal mining

0.5

Criterion 39

Justification

Colombia has a state-coordinated Victim and Witness Protection Program. Initially conceived under the Justice and Peace Law, this program is coordinated with the National Protection Unit (UNP) and the Attorney General's Office, and seeks to safeguard the life, integrity, liberty, and security of individuals threatened for cooperating with the justice system. While Colombia has protection protocols and specialized forces to assist those threatened for reporting or testifying against criminal networks, there is no specific protocol or legislation for illegal mining networks.

Sources

<https://www.minjusticia.gov.co/programas-co/LegalApp/Paginas/Protecci%C3%B3n-a-V%C3%ADctimas-.aspx#:~:text=%E2%80%A2%20El%20Programa%20de%20Protecci%C3%B3n,procesos%20para%20salir%20del%20pa%C3%A>
Ds

<https://www.policia.gov.co/noticia/hacemos-frente-mineria-ilegal#:~:text=La%20operaci%C3%B3n%20led%20by%20the,%20extraction%C3%B3n%20illegal%20of%20mineral>

<https://savvialegal.com/2024/05/16/articulo-de-opinion-la-mineria-ilegal-y-el-lavado-de-trabajos-en-colombia/#:~:text=capacidades%20para%20detectar%20operaciones%20sospechosas,pol%C3%ADtica%20al%20m%C3%A1s%20alto%20nivel>

I. Support for Sustainable Mining Initiatives

Score: 0.62 / 1.00

Are there public programs to support formalization through incentives to and capacity-building of ASM gold miners?

1.0

Criterion 40

Justification

Colombia has specific public programs to support the formalization of artisanal and small-scale (ASS) miners. Law 2250 of 2022 establishes a special framework for mining legalization and formalization, including differentiated procedures and support programs [1]. The Ministry of Mines and Energy has developed formalization programs that include technical assistance, training, and support for obtaining mining titles and environmental licenses. In addition, the country participates in the Better Gold Initiative, which provides comprehensive technical assistance to mining organizations [2].

Sources

1. Law 2250 of 2022

- URL: <https://www.alcaldiabogota.gov.co/sisjur/normas/Norma1.jsp?i=125438>
 - Article 4: Establishes a roadmap for mining legalization and formalization
 - Article 6: Differential Work and Project Program (PTOD)
2. Ministry of Mines and Energy - Formalization Programs

- URL: <https://www.minenergia.gov.co/>
- Specific support and training programs
- 3. Better Gold Initiative - Technical Assistance
- URL: <https://ororesponsable.org/>
- Comprehensive technical and business assistance to mining organizations

Are there accessible financing mechanisms promoted by the State to support sustainable practices as an alternative to unsustainable ASM gold mining?

0.0

Criterion 41

Justification

Colombia has some financing mechanisms to support sustainable practices, but these are not specifically designed as alternatives to unsustainable artisanal and small-scale mining (ASM). The National Royalties Fund can finance sustainable development projects in mining regions [18]. Programs such as the PNIS's Illicit Crop Substitution Program include productive alternatives, but they are not specifically aimed at ASM miners.

Sources

1. General Royalties System
 - URL: <https://www.sgr.gov.co/>
 - Financing for development projects in mining regions
2. PNIS - National Comprehensive Program for Crop Substitution
 - URL: <https://www.presidencia.gov.co/pnis>
 - Productive alternatives for communities
3. Better Gold Initiative - Responsible Gold Fund
 - URL: <https://ororesponsable.org/>
 - Fund for social and environmental projects (international initiative)

LIMITATIONS IDENTIFIED:

- Mechanisms not specifically aimed at alternatives to artisanal and small-scale mining (ASM)
- Lack of specific state programs for productive transition
- Limited access to financing for small-scale miners

Are safer mercury-free technologies promoted through incentives or support programs?

0.0

Criterion 42

Justification

Colombia promotes mercury-free technologies primarily through specific projects and international cooperation, but lacks a comprehensive, institutionalized national program. The country participates in the UNDP's Planet GOLD project, which promotes mercury-free technologies [19]. Law 1658 of 2013 prohibits the use of mercury in mining, which indirectly promotes alternative technologies, but does not establish specific incentives for their adoption [20].

Sources

1. Planet Gold Project - UNDP
 - URL: <https://www.planetgold.org/>
 - Promotes mercury-free technologies in artisanal and small-scale mining (ASM)
2. Law 1658 of 2013
 - URL: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=53781>
 - Prohibits the use of mercury in mining
3. Better Gold Initiative
 - URL: <https://ororesponsable.org/>
 - Includes the promotion of safer technologies

LIMITATIONS IDENTIFIED:

- Promotion primarily through specific projects
- Lack of an institutionalized national program
- Limited incentives for the adoption of alternative technologies

Are women, traditional communities and Indigenous peoples specifically included in sustainable ASM initiatives?

0.5

Criterion 43

Justification

Women and Indigenous Peoples are partially included in some sustainable ASM initiatives, but not comprehensively in all national policies. The Better Gold Initiative includes specific criteria for gender equity and the participation of Indigenous communities [2]. Prior consultation with Indigenous Peoples is constitutionally established, but there are no specific programs that systematically integrate women and Indigenous Peoples into sustainable ASM initiatives at the national level.

Sources

1. Better Gold Initiative - SBGA Criteria
 - URL: <https://ororesponsable.org/>
 - Includes criteria for gender equity and community participation
2. Political Constitution of 1991
 - Establishes prior consultation for Indigenous Peoples
3. Decree 1320 of 1998
 - URL: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=1392>
 - Regulates prior consultation

Are there governmental programs to collaborate with NGOs, academic institutions, or international agencies to promote sustainable ASM practices?

1.0

Criterion 44

Justification

Colombia has multiple government programs collaborating with NGOs, academic institutions, and international agencies to promote sustainable practices in artisanal and small-scale mining (ASM). The Ministry of Mines and Energy officially collaborates with the Better Gold Initiative, which includes partnerships with multiple organizations [2]. The country collaborates with USAID through the "Legal Gold" program, with the UNDP on the Planet Gold project, and with the Alliance for Responsible Mining (ARM) [21].

Sources

1. Better Gold Initiative - Partnerships
 - URL: <https://ororesponsable.org/>
 - Official collaboration of the Ministry of Mines with multiple organizations
2. USAID Legal Gold
 - Cooperation program for mining formalization
3. Planet Gold - UNDP
 - URL: <https://www.planetgold.org/>
 - International cooperation project
4. Alliance for Responsible Mining (ARM)
 - URL: <https://www.responsiblemines.org/>
 - Strategic partner in Colombia

Are there clear protection mechanisms for individuals working in areas of mining?

0.5

Criterion 45

Justification

Colombia has some protection mechanisms for people who work in mining areas, mainly through the Protection Program of the National Protection Unit (UNP), but they are not specific to mining workers and their coverage is limited.

Sources

1. National Protection Unit (UNP)

•URL: <https://www.unp.gov.co/>

•Protection Program for People at Risk

2. Ministry of Labor

•Occupational Safety and Health Regulations

•URL: <https://www.mintrabajo.gov.co/>

Is there recognition or promotion of international certification schemes by the government?

1.0

Criterion 46

Justification

The Colombian government recognizes and actively promotes international certification schemes. The Ministry of Mines and Energy is the official counterpart of the Better Gold Initiative, which works with international standards such as Fairmined and CRAFT [2]. The Alliance for Responsible Mining (ARM), the organization behind the Fairmined standard, is a strategic partner of the BGI in Colombia. Furthermore, the CRAFT code has been piloted at artisanal gold mining sites in Colombia [4].

Sources

1. Better Gold Initiative

•URL: <https://ororesponsable.org/>

•The Ministry of Mines and Energy is the official counterpart.

2. Alliance for Responsible Mining

•URL: <https://www.responsiblemines.org/>

•Strategic partner in Colombia for BGI and creator of the Fairmined standard.

3. Craft Code

•URL: <https://www.responsiblemines.org/en/2024/10/craft-code-2-1/>

•Has been piloted at artisanal gold mining sites in Colombia.

SPECIFIC PROVISIONS:

•Official government participation in international initiatives.

•Strategic alliances with certification organizations.

•Pilot implementation of international codes in Colombia.

Is there a government incentive for the adoption of gold certification?

1.0

Criterion 47

Justification

In Colombia, there are no direct and specific government incentives aimed at promoting the adoption of responsible gold certifications. However, the country participates in international economic incentive schemes linked to certified and formalized production.

The main initiative currently in operation is the Better Gold Initiative (BGI), a public-private partnership between the

Swiss Better Gold Association (SBGA) and the Swiss State Secretariat for Economic Affairs (SECO), with the Colombian Ministry of Mines and Energy acting as the official counterpart. Through this mechanism, formalized and certified miners receive a development premium of US\$1.00 per gram of responsible gold, with 70% allocated to community social and environmental projects and 30% to strengthening the productivity of mining operations.

Sources

1. *Better Gold Initiative - Incentive System*

•URL: <https://ororesponsable.org/>

•Premium of \$1.00 per gram of responsibly sourced gold, with 70% allocated to social/environmental projects

2. Law 2250 of 2022

•URL: <https://www.alcaldiabogota.gov.co/sisjur/normas/Norma1.jsp?i=125438>

J. Remediation and Biodiversity Strategy Integration

Score: 0.67 / 1.00

Is ASM gold mining recognized in the country's National Biodiversity Strategy and Action Plan (NBSAP)?

0.5

Criterion 48

Justification

Mining is recognized as a threat to biodiversity in national policy documents, but there is no specific and detailed recognition of artisanal and small-scale mining (ASM) in the National Biodiversity Strategy. The National Biodiversity Policy and the National Development Plan mention mining as a source of pressure on ecosystems [22]. The Humboldt Institute and SINCHI have conducted studies on the impacts of mining on biodiversity, but the specific integration of ASM into the national biodiversity strategy is limited [23].

Sources

1. *National Biodiversity Policy*

•URL: <https://www.minambiente.gov.co/>

•Recognizes mining as a threat to biodiversity

2. *Humboldt Institute*

•URL: <http://www.humboldt.org.co/>

•Studies on the impacts of mining on biodiversity

3. *SINCHI*

•URL: <https://www.sinchi.org.co/>

•Research on mining in Amazonian ecosystems

Does the country have specific programs, targets, or funding mechanisms for ecosystem restoration in areas affected by ASM gold mining?

0.5

Criterion 49

Justification

Colombia has policies, programs, and financing mechanisms aimed at restoring degraded ecosystems, although there is no specific national program directed exclusively at areas affected by artisanal and small-scale gold mining (ASM).

The National Restoration Plan 2015–2030, led by the Ministry of Environment and Sustainable Development (MinAmbiente), establishes general goals for ecological restoration, rehabilitation, and recovery of strategic ecosystems, including areas impacted by extractive activities. However, this instrument does not explicitly identify the areas degraded by ASM nor does it define specific funding lines for them.

The Regional Autonomous Corporations (CARs) implement regional ecological restoration programs financed with their own resources, environmental royalties, and international cooperation. These actions have included interventions in territories affected by gold mining, but they are carried out in a fragmented and decentralized manner, without a national coordinating framework.

Sources

1. *National Restoration Plan*

•URL: <https://www.minambiente.gov.co/>

•General goals for ecosystem restoration

2. *Decree 1076 of 2015*

•URL: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=78153>

•Restoration obligations in environmental licenses

3. *Regional Autonomous Corporations*

•Regional restoration programs

Are there requirements or guidance for restoration, remediation, or compensation for degraded areas?

1.0

Criterion 50

Justification

Colombia has clear requirements for the restoration, remediation, and compensation of degraded areas. Decree 1076 of 2015 establishes specific restoration and compensation obligations in environmental licenses [15]. Resolution 1517 of 2012 establishes the Manual for the Allocation of Compensation for Biodiversity Loss [25]. Furthermore, environmental licenses are required to include decommissioning and abandonment plans.

Sources

1. *Decree 1076 of 2015*

•URL: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=78153>

•Article 2.2.2.3.9.2: Mandatory Dismantling and Abandonment Plan

2. *Resolution 1517 of 2012*

•URL: <https://www.minambiente.gov.co/>

•Manual for the Allocation of Compensation for Biodiversity Loss

3. *Law 685 of 2001*

•URL: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=9202>

4. *Comprehensive Deforestation Containment Plan 2023–2026*

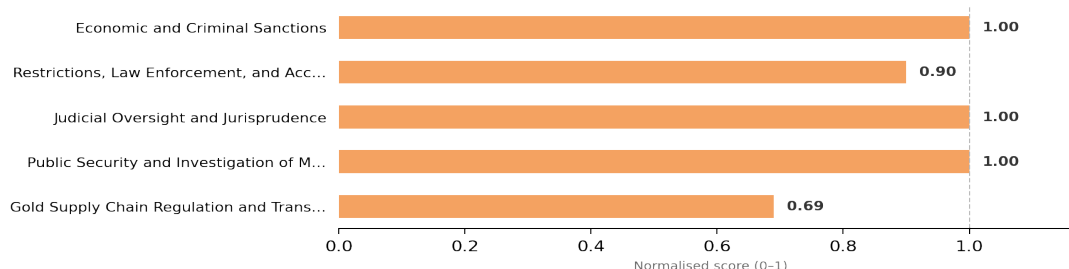
Environmental Liabilities Law (Law 2320 of 2023)[AP1]

[AP1]<https://www.minambiente.gov.co/wp-content/uploads/2025/03/Plan-Integral-Contencion-Deforestacion-2023-2026.pdf>

III. Investigation and enforcement

4.59 / 5.00

Category scores



K. Gold Supply Chain Regulation and Transparency

Score: 0.69 / 1.00

Does the country require formal registration of all actors in the ASM gold supply chain (miners, traders, and exporters)?

1.0

Criterion 51

Justification

Colombia has legal mechanisms that regulate the formal registration of certain actors in the gold supply chain, but these do not comprehensively cover all levels of artisanal and small-scale mining (ASM).

Decree 276 of 2015 established the Single Registry of Mineral Traders (RUCOM), administered by the National Mining Agency (ANM). This registration is mandatory for all mineral traders and buyers, who must prove the legal origin of the gold through certificates issued by mining titleholders or sales authorizations from formally registered artisanal miners. RUCOM is a key tool for traceability and control of mineral trade.

However, registration is not universally required for all artisanal and small-scale (ASSM) miners, especially in the case of subsistence or artisanal mining, defined in Article 31 of Law 685 of 2001 (Mining Code) and regulated by Decree 1666 of 2016. This type of mining is exempt from some formal requirements, and artisanal miners can trade gold through simplified authorizations, without mandatory individual registration with the National Mining Agency (ANM).

Meanwhile, gold exporters must be formally registered with the National Directorate of Taxes and Customs (DIAN), comply with foreign exchange regulations, and present certificates of origin issued by the owners or traders registered in the Single Registry of Gold Exporters (RUCOM).

Sources

Decree 276 of 2015 (which regulates the Single Registry of Mineral Traders – RUCOM). Available at: <https://www.suin-juriscol.gov.co/viewDocument.asp?id=30019750>

Law 685 of 2001 (Mining Code), Article 31 – Subsistence Mining. Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=9202>

Decree 1666 of 2016 (which regulates the classification and formalization of subsistence mining). Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=77883>

National Directorate of Taxes and Customs (DIAN) – Requirements for Gold Exports. Available at:

Are there specific permits or procedures required for exporting ASM gold?

1.0

Criterion 52

Justification

In Colombia, gold exports are subject to general customs permits and procedures applicable to all actors in the mining sector, without distinction between gold from artisanal and small-scale mining (ASM) and gold from medium- or large-scale operations.

Gold exporters must be registered with the National Directorate of Taxes and Customs (DIAN) as foreign trade users, comply with the exchange regulations of the Central Bank of Colombia (Banco de la República), and submit the documentation required by Decree 1165 of 2019 (customs regime), including export declarations, commercial invoices, and certificates of origin for the mineral.

The Single Registry of Mineral Traders (RUCOM), established by Decree 276 of 2015, requires that all mineral transactions be accompanied by a legal certificate of origin issued by the mining titleholder or authorized trader. This requirement does not differentiate between types of mining, so gold from formalized artisanal and small-scale mining or from artisanal panning is exported under the same procedures as that from large-scale mining.

Sources

Decree 1165 of 2019 (establishing the customs regime in Colombia). Available at:

<https://www.suin-juriscol.gov.co/viewDocument.asp?id=30036618>

Decree 276 of 2015 (regulating the Single Registry of Mineral Traders – RUCOM). Available at:

<https://www.suin-juriscol.gov.co/viewDocument.asp?id=30019750>

National Directorate of Taxes and Customs (DIAN) – Procedures for gold exports. Available at:

<https://www.dian.gov.co/>

Central Bank of Colombia – Foreign exchange regime for mineral export operations. Available at:

<https://www.banrep.gov.co/>

Are files on ASM areas, including titles, licenses, embargoes, and monitored zones, available in open, updated formats compatible with geospatial analysis systems?

0.5

Criterion 53

Justification

Colombia makes some georeferenced information on the mining sector publicly available, but the files are not fully available in open formats or uniformly updated, and there is no specific identification of artisanal and small-scale mining (ASM) areas within official systems.

The National Mining Registry, managed by the National Mining Agency (ANM), offers georeferenced information on current, pending, or expired mining titles, available through its online map viewer. However, this system does not classify or distinguish areas associated with ASM, nor does it include specific information layers on subsistence mining, artisanal panning, or formalization processes. Furthermore, much of the information is published in limited PDF or KML formats, which restricts its interoperability with advanced GIS (Geographic Information Systems) platforms.

The Colombian Mining Information System (SIMCO), for its part, provides statistics and reports on production, marketing, and licensing, but not in an open format or downloadable in editable geospatial layers (such as interoperable shapefiles, GeoJSON, or WMS).

Although Law 1712 of 2014 (Transparency and Access to Public Information Law) requires state entities to publish their data in open and reusable formats, the updating and geospatial standardization of mining information still presents significant gaps, especially regarding artisanal and small-scale mining (ASM) and areas under embargo or environmental monitoring measures.

Sources

National Mining Agency (ANM) – National Mining Registry. Available at: <https://www.anm.gov.co/>

Colombian Mining Information System (SIMCO). Available at:
<https://minenergia.gov.co/es/repositorio-normativo/normativa/sistema-de-informaci%C3%B3n-minera/>

Law 1712 of 2014 (Law on Transparency and the Right of Access to National Public Information). Available at:
<https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=56882>

Is there a strategy in place to ensure the traceability of gold from extraction to final sale?

0.5

Criterion 54

Justification

Colombia has regulatory instruments that establish the traceability of gold and other minerals, but it still lacks a comprehensive, fully operational, and nationwide system that allows tracking the mineral from extraction to final sale.

The Single Registry of Mineral Traders (RUCOM), created by Decree 276 of 2015, constitutes the first link in the traceability chain. Administered by the National Mining Agency (ANM), this registry requires gold traders and buyers to register and submit certificates of origin that prove the mineral's legality. However, RUCOM does not allow for continuous digital tracking of gold throughout the entire supply chain, limiting its traceability to the initial commercialization stage.

Sources

1. Decree 276 of 2015 - RUCOM

•URL: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=61724>

Is disclosure of transactions between miners, traders, and exporters mandatory?

0.0

Criterion 55

Justification

There is no specific obligation to publicly disclose transactions between miners, traders, and exporters in Colombia. Although the RUCOM (Single Registry of Traders) requires certificates of origin, it does not mandate the public disclosure of specific transactions [3]. Commercial transactions are considered private information, and there is no legal framework requiring their systematic public disclosure.

Sources

1. Decree 276 of 2015

•URL: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=61724>

•Does not establish public disclosure of transactions

Does the legal framework require financial institutions to verify the legal provenance of gold-related transactions?

1.0

Criterion 56

Justification

Colombia formally requires financial institutions and commercial entities involved in transactions related to gold and other precious metals to implement due diligence measures through mandatory anti-money laundering and counter-terrorist financing (AML/CFT) risk management regimes.

The Money Laundering and Terrorist Financing Risk Management System (SARLAFT), overseen by the Financial Superintendency of Colombia, and the Comprehensive AML/CFT Self-Control and Risk Management System (SAGRILAFT), established by the Superintendency of Companies, require companies in the real sector, including those engaged in the trade, refining, or export of precious metals, to implement due diligence procedures, customer identification, beneficial ownership identification, and suspicious transaction reporting.

External Circular 100-000016 of 2020 from the Superintendency of Companies updated the SAGRILAFT regulations, establishing a risk-based approach that requires commercial companies, branches of foreign companies, and sole proprietorships to periodically assess the risk associated with transactions involving precious metals and stones, as well as the obligation to maintain verifiable records and reports to the Financial Information and Analysis Unit (UIAF).

The UIAF, attached to the Ministry of Finance and Public Credit, is the agency responsible for centralizing, analyzing, and cross-referencing financial and commercial information from obligated entities, including gold purchase, sale, export, and financing operations. Its work allows for the detection of irregularities and the prevention of the use of the gold sector for illicit activities.

Additionally, Law 2177 of 2021 (Mining Banking Law) promotes the formal financial inclusion of mining actors, while reinforcing transparency and regulatory compliance obligations, ensuring that access to the banking system is conditional upon compliance with the due diligence and traceability requirements established by the competent authorities.

Sources

External Circular 100-000016 of 2020 (Superintendency of Companies). Available at:
<https://www.supersociedades.gov.co/nuestra-entidad/normatividad/Paginas/circulares-externas.aspx>

Law 2177 of 2021 (Mining Banking Law). Available at:
<https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=174792>

Financial Information and Analysis Unit (UIAF) – Functions and guidelines on the prevention of money laundering. Available at: <https://www.uiaf.gov.co/>

Is there a centralized digital/electronic registry for gold supply chain transactions accessible to regulatory authorities and civil society?

0.5

Criterion 57

Justification

Colombia has made progress in creating a centralized digital registry for mineral transactions, including gold, through the Mineral Traceability Platform, established by Decree 2234 of 2023. This system is the main technological mechanism for registering, verifying, and controlling the extraction, transportation, processing, and marketing of minerals, with the aim of strengthening transparency, preventing money laundering, and ensuring traceability throughout the entire production chain.

The National Mining Agency (ANM) is the entity responsible for managing and integrating the information within the

platform, as well as verifying production volumes, validating the identities of operators, controlling the quantities traded, and ensuring interoperability with other government institutions, such as the National Directorate of Taxes and Customs (DIAN), the Financial Information and Analysis Unit (UIAF), and the Ministry of Mines and Energy (MinEnergía).

Resolution 759 of 2024 from the National Mining Agency (ANM) regulated the technical operation of the platform, defining the procedures for electronic registration of mining transactions and the mandatory reporting mechanisms for actors in the supply chain. However, access to information is primarily restricted to regulatory authorities, without open access mechanisms or public consultation for civil society or the academic sector.

Consequently, although the country has a centralized digital system in the implementation phase, its use and coverage are still limited, and access to data is restricted to the relevant state institutions. Therefore, the score of 0.5 reflects partial compliance with the criterion: the legal and technological framework exists, but not full operational capacity or open access to information.

Sources

Decree 2234 of 2023 (establishing the Mineral Traceability Platform). Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=227210>

Resolution 759 of 2024 (National Mining Agency – regulating the Mineral Traceability Platform). Available at: <https://www.anm.gov.co/sites/default/files/2024-10-31-RESOLUCION-NUMERO-759-28-OCT-2024.pdf>

National Mining Agency (ANM) – Functions of the Traceability System. Available at: <https://www.anm.gov.co/>

Are there protocols for information sharing and joint enforcement with neighboring countries?

1.0

Criterion 58

Justification

Yes. Colombia has established protocols, bilateral agreements, and multilateral mechanisms for information exchange and joint law enforcement regarding environmental control and the fight against illegal mining, particularly in border areas of the Amazon.

At the bilateral level, Colombia maintains cooperation agreements with Brazil, Peru, Ecuador, and Venezuela focused on controlling illegal mining, environmental protection, and the shared management of transboundary natural resources.

At the multilateral level, Colombia actively participates in:

The Amazon Cooperation Treaty Organization (ACTO), which promotes the regional exchange of information on illegal mining, mercury trafficking, and deforestation through the Amazon Regional Observatory (ORA). This mechanism facilitates the exchange of satellite data, early warnings, and joint action protocols among member countries.

The Andean Committee against Illegal Mining (CAMI), created by the Andean Community of Nations (CAN), of which Colombia is a member state along with Bolivia, Ecuador, and Peru. The CAMI promotes the coordination of public policies, regulatory harmonization, and technical cooperation to combat illegal mining.

This includes the exchange of information on illicit mercury trafficking routes and financial flows, as well as coordinated border enforcement actions.

Joint Operations Artemisa, led by the Colombian armed forces with support from Brazil, Peru, and Ecuador.

These joint operations aim to control deforestation, illegal mining, and other illicit economies in the Amazon.

They incorporate protocols for direct communication between environmental, customs, and police authorities and have been replicated as a model for regional cooperation.

Additionally, the SINCHI Amazonian Institute for Scientific Research, under the coordination of the Ministry of Environment and Sustainable Development, participates in regional environmental monitoring platforms and scientific information exchange with counterpart institutions in Brazil, Peru, and Ecuador, facilitating the early detection of transboundary environmental impacts related to gold mining.

Together, these bilateral and multilateral mechanisms consolidate a regional network of police, environmental and scientific cooperation that strengthens the capacity for joint response to illegal mining and associated crimes, ensuring the effective implementation of the law in border areas.

Sources

1. Joint Operations Artemisa

- Coordinated operations between Colombia, Brazil, Peru, and Ecuador
- Objective: Control of deforestation and illegal mining

2. Bilateral Cooperation Agreements

- Colombia-Brazil: Cooperation in border control
- Colombia-Peru: Binational Commission for Amazonian Cooperation Andean Committee against Illegal Mining (CAMI)
- Mechanism of the Andean Community (CAN) for technical cooperation and joint oversight.

URL: <https://www.comunidadandina.org>

Amazon Cooperation Treaty Organization (ACTO)

Regional Amazonian Observatory – Exchange of information on illegal mining and deforestation.

URL: <http://www.otca-oficial.info>

Amazonian Institute for Scientific Research (SINCHI)

Technical and scientific cooperation in regional environmental monitoring.

URL: <https://www.sinchi.org.co>

L. Public Security and Investigation of Mining-Related Crimes

Score: 1.00 / 1.00

Do public security bodies have specific strategies in place for safeguarding Indigenous and traditional communities against crimes related to mining in their territories?

1.0

Criterion 59

Justification

Colombia has specific strategies in place to protect Indigenous communities from mining-related crimes. The National Police has a Group for the Protection of Ethnic Communities, and the National Army conducts specific operations in Indigenous territories affected by illegal mining.

Sources

1. National Police - Ethnic Communities Protection Group

- URL: <https://www.policia.gov.co/>

- Specialized unit for the protection of ethnic communities
 - 2. National Army - Operations in Indigenous Territories
 - Specific operations such as "Operation Artemis"
 - Objective: Control of illegal mining in indigenous territories
 - 3. Decree 2137 of 2018
 - Establishes protection measures for social leaders and ethnic communities
-

Are there specialized police and prosecutor units for environmental crimes or illegal mining with effective coverage in critical areas?

1.0

Criterion 60

Justification

Colombia has specialized units within both the National Police and the Attorney General's Office to combat environmental crimes and illegal mining. The Police have the DIJIN (Directorate of Criminal Investigation and INTERPOL) with specialized groups, and the Attorney General's Office has prosecutors specializing in environmental crimes.

Sources

1. DIJIN - National Police
 - URL: <https://www.policia.gov.co/>
 - Specialized groups focused on environmental crimes and illegal mining
 2. Attorney General's Office - Environmental Crimes Unit
 - URL: <https://www.fiscalia.gov.co/>
 - Specialized prosecutors for environmental crimes
 3. CTI (Technical Investigation Corps)
 - Specialized technical investigation unit
 - Coverage in critical areas of illegal mining
-

Is there a clear procedure for investigating crimes related to mining?

1.0

Criterion 61

Justification

Colombia has clear procedures for the investigation of mining-related crimes established in the Code of Criminal Procedure (Law 906 of 2004) and specific protocols developed by the Attorney General's Office for environmental crimes and illegal mining.

Sources

1. Law 906 of 2004 - Code of Criminal Procedure
 - URL: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=14787>
 - General procedures for criminal investigation
 2. Attorney General's Office - Investigation Protocols
 - URL: <https://www.fiscalia.gov.co/>
 - Specific protocols for environmental crimes and illegal mining
 3. Manual for the Investigation of Environmental Crimes
 - Developed by the Attorney General's Office
 - Specific procedures for illegal mining
-

Does the country have bilateral or multilateral protocols or agreements in place to coordinate joint police operations for the enforcement of environmental and mining laws?

1.0

Criterion 62

Justification

Colombia actively participates in bilateral and multilateral agreements to combat illegal mining and environmental crimes in the Amazon. It is a party to the Amazon Cooperation Treaty (1978) and the Leticia Pact (2019), through which it committed to coordinating actions with Brazil, Peru, Ecuador, and Bolivia to combat deforestation and illegal mining. Within the framework of the Andean Community (Decision 774, 2012), Colombia collaborates with its neighbors on joint operations, information sharing, and the seizure of machinery and materials used in illicit mining activities.

There are also binational commissions with Peru, Ecuador, and Brazil that address security and environmental issues. For example, in 2023, a binational operation was carried out with Brazil on the Puré River, where 19 illegal mining dredges that were contaminating the water with mercury were destroyed. With Peru, Colombia participates in binational cabinets focused on controlling illegal mining along the Putumayo River.

Colombia hosted the Amazon Summit of the ACTO (Bogotá, 2025), where countries agreed to strengthen police and judicial cooperation and create a Special Commission for Amazonian Security to combat transboundary environmental crimes.

Sources

OTCA (Bogotá Declaration, 2025); Colombian National Police (Operation Puré, 2023); INTERPOL (Green Shield, 2025); Andean Community (Decision 774, 2012).

M. Judicial Oversight and Jurisprudence

Score: 1.00 / 1.00

Have courts issued binding decisions related to illegal gold mining or its socio-environmental impacts in the last five years?

1.0

Criterion 63

Justification

Colombian courts have issued multiple binding decisions related to illegal gold mining and its socio-environmental impacts in the last five years. These include rulings from the Constitutional Court, the Council of State, and higher courts.

Sources

Supreme Court Ruling STC4360-2018 - declared the Colombian Amazon a subject of rights

• URL: <https://cortesuprema.gov.co/corte/wp-content/uploads/2018/04/STC4360-2018-2018-00319-011.pdf>

1. Constitutional Court Ruling T-622/16

• URL: <https://www.corteconstitucional.gov.co/relatoria/2016/t-622-16.htm>

• Environmental precautionary principle applied to ethnic communities

2. Constitutional Court Ruling C-259/16

• URL: <https://www.corteconstitucional.gov.co/relatoria/2016/c-259-16.htm>

• Legalization of mining without permits and protection of miners Traditional

3. Case 110016000000 2022-02362 - Superior Court of Medellín (2024)

• URL: <https://salapenaltribunalmedellin.com/images/relatoria/110016000000202202362sen2.pdf>

• Conviction for aggravated money laundering related to illicit gold

SPECIFIC JURISPRUDENCE:

- *Judgment No. 037-2024: Conviction of Modesto Palacios Córdoba and others for money laundering through shell companies that legalized gold from illicit mining*
 - *Legal application: Articles 323, 324, 327, and 340 of the Penal Code*
-

Have judicial decisions or jurisprudence recognizing natural ecosystems as subjects of rights generated legal restrictions, obligations, or the imposition of sanctions in legal cases related to mining activities?

1.0

Criterion 64

Justification

Colombia has pioneering jurisprudence that recognizes ecosystems as subjects of law, generating specific restrictions and obligations for mining activities. Ruling T-622/16 regarding the Atrato River and subsequent decisions have established important precedents.

Sources

1. *Constitutional Court Ruling T-622/16*
 - URL: <https://www.corteconstitucional.gov.co/relatoria/2016/t-622-16.htm>
 - *Declares the Atrato River a subject of law*
 - *Specific provision: Orders the cessation of activities that cause harm, including illegal mining*
 2. *Supreme Court Ruling STC4360-2018*
 - *Declares the Amazon rainforest a subject of law*
 - *Establishes obligations to protect against deforestation and illegal mining*
 3. *Jurisprudential follow-up*
 - *Multiple tutela decisions have applied these precedents*
 - *Specific restrictions on mining activities in protected ecosystems*
-

Can individuals or communities file collective environmental actions or constitutional remedies in mining-related cases?

1.0

Criterion 65

Justification

Colombia broadly and effectively guarantees the right of individuals and communities to file collective actions and constitutional remedies to defend the environment and the rights affected by mining activity.

The 1991 Political Constitution enshrines in Articles 79 and 80 the right of all persons to enjoy a healthy environment and the duty of the State to protect the diversity and integrity of the environment. Furthermore, Article 88 recognizes class action lawsuits and public interest lawsuits as legal mechanisms for the protection of collective rights and interests, including environmental ones.

Law 472 of 1998 develops this constitutional mandate, regulating class action lawsuits for the immediate protection of collective rights and interests such as the enjoyment of a healthy environment, the existence of ecological balance, the rational management of natural resources, and the defense of public assets. It also provides for public interest lawsuits (Articles 46 to 67), which allow communities affected by mining activities to obtain collective redress for environmental or social damages.

Additionally, the tutela action (Article 86 of the Constitution) provides an expedited mechanism for protecting fundamental rights—such as the rights to life, health, water, and participation—when these are threatened or violated by mining projects. The compliance action (Law 393 of 1997) allows for demanding the effective enforcement of environmental regulations or mining licenses that the authorities are not implementing.

Sources

1. *Political Constitution of 1991*

- Article 86: Writ of Protection

- Article 88: Class Actions

2. *Law 472 of 1998*

- URL: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=1592>

- Regulates class and class actions

3. *Applicable Jurisprudence*

- Judgment SU133/17: Rights of Traditional Miners in Marmato

- URL: <https://www.corteconstitucional.gov.co/relatoria/2017/su133-17.htm>

Is judicial action allowed in defense of diffuse environmental interests (such as ecosystem protection or public health) without the need to demonstrate individual harm?

1.0

Criterion 66

Justification

Colombia expressly permits legal action in defense of diffuse environmental interests without the need to demonstrate individual harm through class action lawsuits regulated by Law 472 of 1998 and Article 88 of the Constitution.

The jurisprudence of the Council of State and the Constitutional Court has reaffirmed this principle, emphasizing that environmental interests are diffuse in nature and their protection cannot be contingent upon demonstrating individual harm. In Judgment C-215 of 1999, the Constitutional Court held that the purpose of class action lawsuits is to guarantee the protection of collective rights whose ownership does not belong to a specific individual, but rather to the community as a whole. Similarly, Judgment T-622 of 2016 recognized the standing of communities and social organizations to act on behalf of nature and ecosystems, without the need to demonstrate individual harm.

Sources

Political Constitution of Colombia of 1991 (Article 88). Available at:

<https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=4125>

Law 472 of 1998 (which develops Article 88 of the Political Constitution regarding class action lawsuits and public interest lawsuits). Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=188>

Constitutional Court – Judgment C-215 of 1999 (broad standing to defend collective rights). Available at:

<https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=6908>

Constitutional Court – Judgment T-622 of 2016 (recognition of the Atrato River as a subject of rights). Available at:

<https://www.corteconstitucional.gov.co/relatoria/2016/t-622-16>

Is there an interstate coordination mechanism for the investigation and prosecution of transboundary environmental crimes related to mining?

1.0

Criterion 67

Justification

Colombia has established mechanisms for interstate and interinstitutional cooperation for the investigation and prosecution of transboundary environmental crimes, including those related to illegal mining and mercury trafficking. These mechanisms operate at the multilateral, bilateral, and regional levels.

At the multilateral level, Colombia actively participates in INTERPOL through the Environmental Crimes Program (ENVIRONET), which coordinates joint operations against illegal mining, the illicit gold trade, and mercury smuggling. Within this framework, Colombia has participated in operations such as “Operation Arcadia” and “Operation

Amazonas," aimed at dismantling illegal mining networks and the transboundary trafficking of hazardous chemicals.

Furthermore, the Colombian Attorney General's Office is part of the Ibero-American Network of Environmental Prosecutors (Red FA), which promotes mutual legal assistance and the exchange of information among public prosecutors' offices for the prosecution of environmental crimes with regional impact. This network includes countries such as Peru, Ecuador, Brazil, and Bolivia, with which Colombia shares Amazonian borders affected by illegal mining activities.

At the regional level, Colombia participates in environmental and judicial cooperation mechanisms such as the Amazon Cooperation Treaty Organization (ACTO), where joint action plans are developed against environmental crimes in the Amazon, including illegal gold mining and mercury smuggling. Similarly, it maintains bilateral judicial and police cooperation agreements with Brazil, Peru, and Ecuador, focused on intelligence sharing, coordination of border operations, and the extradition of those responsible for transnational environmental crimes.

These actions are institutionally supported by the Attorney General's Office, the Colombian National Police (DIJIN and the Directorate of Carabineros and Environmental Protection), the Ministry of Environment and Sustainable Development, and the Financial Information and Analysis Unit (UIAF), which strengthens the coordination between environmental control, criminal intelligence, and international judicial cooperation.

Sources

INTERPOL – Environmental Crimes Program (ENVIRONET) and Operations Arcadia/Amazonas. Available at: <https://www.interpol.int/>

<https://www.cgfm.mil.co/es/multimedia/noticias/nueva-operacion-contr-la-explotacion-ilicita-de-yacimientos-mineros-en>

Office of the Attorney General of Colombia – Participation in the Ibero-American Network of Environmental Prosecutors (Red FA). Available at: <https://www.aiamp.info/images/Documentos-REDES/2025/guia-delitos-ambientales.pdf>

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Ministry of Foreign Affairs of Colombia – Bilateral agreements on judicial and police cooperation with Brazil, Peru, and Ecuador. Available at: <https://www.cancilleria.gov.co/>

Brazil: <https://www.gov.br/mre/pt-br/embaixada-bogota/juridica-extradiciones/cooperacion-juridica-con-colombia>

Peru: https://www.oas.org/ext/Portals/33/Files/TreatiesB/Per_biltrat_col_esp_2.pdf

Ecuador: https://www.oas.org/ext/Portals/33/Files/TreatiesB/Ecu_tratbil_col_esp_1.pdf

N. Restrictions, Law Enforcement, and Accountability

Score: 0.90 / 1.00

Does the government enforce compliance of regulations related to illegal ASM, including through sanctions for environmental damages and non-compliance?

1.0

Criterion 68

Justification

The Colombian government effectively enforces regulations related to illegal artisanal and small-scale mining (ASM) through regular police interventions, military operations, and coordinated inter-institutional actions. Operations such as

"Artemisa" and "Ágata" demonstrate effective enforcement.

Sources

1. Operation Artemis

- Regular operations against illegal mining in the Amazon
- Coordination between the Police, Army, Prosecutor's Office, and environmental authorities

2. Operation Agate

- Operations in border areas against illegal mining
- Documented results of seizures and arrests

3. National Police Reports

- URL: <https://www.policia.gov.co/>
- Statistics on operations against illegal mining

Can licenses be suspended or revoked in cases of environmental law violations or social violations?

1.0

Criterion 69

Justification

In Colombia, the process for developing mining activities is divided into two distinct stages, each with its own responsibilities and permits:

Granting of the Mining Title: The National Mining Agency (ANM) grants the mining title through a concession contract. This act confers upon the holder the right to explore and, subsequently, to apply for an environmental license to operate the mine, but does not require the prior submission of an Environmental Impact Assessment (EIA) or the obtaining of an environmental license at this stage.

Granting of the Environmental License: Once exploration is complete and before commencing operations, the holder of the mining rights is obligated to apply for and obtain an environmental license from the competent authority—the National Environmental Licensing Authority (ANLA) or the Regional Autonomous Corporation (CAR)—in accordance with Law 99 of 1993 and Decree 1076 of 2015. At this stage, submitting an EIA is mandatory, especially for large-scale projects or those with the potential to cause significant environmental impacts.

In addition, the Ministry of Environment and Sustainable Development (MinAmbiente) introduced the Temporary Environmental License (LAT) as a transitional instrument for environmental formalization. This license allows artisanal and small-scale miners to begin or continue operations while they progress in their formalization process with the National Mining Agency (ANM), without yet needing a mining title. To obtain the LAT, applicants must submit a certification from the ANM confirming that they are in the formalization process and comply with basic environmental commitments.

Thus, although neither an Environmental Impact Assessment (EIA) nor an environmental license is required before granting a mining title, the LAT constitutes a partial exception, as it allows for the temporary regulation of the activities of informal miners in transition to environmental legality.

Sources

[1] Law 685 of 2001 (Mining Code). Available at:

<https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=9202> [5] Decree 1076 of 2015. Available at:

<https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=78153> [15] Law 1333 of 2009. Available at:

<https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=37075>

**Are there specific sanctions or criminal categories related to damage caused by mercury?
*0.5 may be given in cases where there is general sanctions on waste disposal and environmental harm, but none directly related to mercury.**

0.5

Criterion 70

Justification

Since 2018, any use of mercury in mining has been illegal in Colombia, even for licensed operations. To ensure compliance, the government enforces both administrative and criminal regulations. In the criminal sphere, Colombia updated its Penal Code (Law 599 of 2000) by incorporating new environmental crimes through Law 1453 of 2011 and Law 2111 of 2021. According to these regulations, carrying out illegal mining activities that cause environmental damage can be considered a crime of “damage to natural resources.”

Furthermore, a bill introduced in 2025 by the National Mining Agency proposes creating a specific crime for the use of mercury in mining, highlighting the seriousness of this practice (Prensa Latina, 2025). According to this proposal, facilitating or using mercury in gold mining would constitute a new environmental crime punishable by 5 to 7 years in prison and fines of up to 50,000 daily minimum wages.

Sources

<https://www.prensa-latina.cu/2025/05/20/buscan-penalizar-empleo-de-mercurio-en-extraccion-minera-en-colombia/#:~:text=salud%20humana%20y%20las%20fuentes,h%C3%ADdricas>

Is there any legal obligation to adopt rehabilitation and/or compensation measures where environmental damage has been found?

1.0

Criterion 71

Justification

Colombia has a legal framework that obligates those responsible for environmental damage (natural or legal persons) to adopt rehabilitation, restoration, and compensation measures, both administratively and criminally.

In the administrative sphere, Law 99 of 1993, in its Article 8, establishes the principle that “whoever causes damage to the environment is obligated to restore, rehabilitate, or compensate.” This mandate is specified in Decree 1076 of 2015, whose Article 2.2.2.3.9.2 requires the inclusion of Environmental Dismantling, Abandonment, and Restoration Plans within the environmental licensing process, overseen by the ANLA (National Environmental Licensing Authority) and the CARs (Regional Autonomous Corporations).

The environmental sanctioning procedure of Law 1333 of 2009 reinforces this obligation by empowering environmental authorities to impose environmental compensation measures along with administrative sanctions (fines, suspension, or revocation of licenses).

The reform introduced in 2024 (through a regulatory decree updating the sanctioning procedure) incorporated the possibility of resolving the administrative procedure early when the offender acknowledges responsibility and effectively implements compensatory or restorative measures, strengthening the restorative and preventive approach of the system.

In environmental criminal matters, the Colombian Penal Code (Law 599 of 2000) defines crimes against natural resources and the environment (Articles 328–339), and the Office of the Attorney General of Colombia applies restorative justice mechanisms and plea agreements that recognize the possibility of including environmental compensation commitments as part of comprehensive reparations and sentence reductions, in accordance with Article 351 of the Code of Criminal Procedure (Law 906 of 2004).

Additionally, Resolution 1517 of 2012 of the Ministry of Environment regulates the Manual for the Allocation of Compensation for Loss of Biodiversity, which establishes mandatory technical criteria to calculate compensation

equivalent to or greater than the damage caused, especially in environmental licenses and sanctions.

Sources

Law 99 of 1993 (National Environmental System – SINA), art. 8. Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=297>

Law 1333 of 2009 (Environmental Sanctioning Procedure). Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=36879>

Decree 1076 of 2015 (Single Regulatory Decree for the Environment and Sustainable Development Sector), art. 2.2.2.3.9.2. Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=78153>

Resolution 1517 of 2012 (Manual for the Allocation of Compensation for Biodiversity Loss). Available at: <https://www.minambiente.gov.co/documento-normativa/resolucion-1517-de-2012/>

Law 599 of 2000 (Penal Code) – Title XI, Chapter III “Crimes Against Natural Resources and the Environment.” Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=6388>

Law 906 of 2004 (Code of Criminal Procedure), art. 351 (Preach Agreements and Negotiations). Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=14195>

Can sanctions be applied based on remote evidence (e.g., satellite images)?

1.0

Criterion 72

Justification

Colombia has clear legal sanctions for environmental crimes related to MAPE established in the Penal Code, with specific penalties that include imprisonment and significant fines.

Sources

1. Penal Code (Law 599 of 2000), Article 332

•Specific provision: “Anyone who, without permission from the competent authority or in violation of existing regulations, exploits, explores, or extracts mineral deposits, or exploits sand, rock, or alluvial material from riverbeds and banks by means capable of causing serious damage to natural resources or the environment, shall be imprisoned for two (2) to eight (8) years and fined one hundred (100) to fifty thousand (50,000) current monthly minimum wages.”

2. Article 328 - Illicit exploitation of renewable natural resources

•Imprisonment for 1 to 3 years and a fine of up to 5,000 current monthly minimum wages

3. Article 338 - Environmental pollution

•Imprisonment for 1 to 5 years and a fine of up to 300 current monthly minimum wages

O. Economic and Criminal Sanctions

Score: 1.00 / 1.00

Are there clear legal sanctions for environmental crimes related to ASM?

1.0

Criterion 73

Justification

Criminal networks involved in illegal gold trading are the subject of specific actions by multiple enforcement agencies in Colombia, including the Attorney General's Office, DIJIN, CTI, and UIAF.

Sources

1. Medellín Superior Court Case (2024)

- Case Number: 110016000000 2022-02362
- URL: <https://salapenaltribunalmedellin.com/images/relatoria/110016000000202202362sen2.pdf>
- Outcome: Conviction of a criminal network that used shell companies to launder illicit gold

2. UIAF - Suspicious Transaction Reports

- URL: <https://www.uiaf.gov.co/>
- Analysis of criminal networks in the gold trade

3. Attorney General's Office - Asset Laundering Unit

- URL: <https://www.fiscalia.gov.co/>
- Specific investigations against criminal networks

DOCUMENTED ACTIONS:

- Judgment No. 037-2024: Conviction of a network that operated with Metales La Yuteña MP Metales SAS and Sociedad Macuira SAS
- Legal application: Articles 323, 324, 327, and 340 of the Penal Code
- Results: Imprisonment and significant fines

Are criminal networks involved in illegal gold trade targeted by enforcement agencies?

1.0

Criterion 74

Justification

In the criminal sphere, the Penal Code (Law 599 of 2000) criminalizes, in Article 338, the illicit exploitation of mineral deposits and other materials, punishable by imprisonment for 64 to 144 months and fines of up to 50,000 times the current monthly minimum wage. Likewise, Article 340 (conspiracy to commit a crime) and Article 345 (money laundering) apply in cases where the illicit gold trade is linked to financing networks for armed groups, drug trafficking, or illegal mining, increasing the penalties and the possibility of asset forfeiture.

Law 1762 of 2015 (Anti-Smuggling Law) reinforces these provisions by establishing economic sanctions and confiscations against those who trade, transport, or export minerals without complying with customs, tax, or traceability requirements, including the forfeiture of the mineral and the imposition of fines equivalent to the commercial value of the confiscated gold.

At the administrative level, Decree 2234 of 2023, which implements the Mineral Traceability Platform, and Decree 276 of 2015 (RUCOM) establish that all commercial transactions involving minerals must have certificates of origin and traceability; failure to comply may result in economic sanctions, suspension of registration in the RUCOM, and restrictions on commercial operations.

Furthermore, Law 1333 of 2009 empowers environmental and mining authorities (ANLA, CAR and ANM) to impose daily fines, suspension of activities and revocation of licenses in cases where the marketing of gold is linked to environmental damage or illegal activities.

Sources

Law 99 of 1993 (National Environmental System – SINA), art. 8. Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=297>

Law 1333 of 2009 (Environmental Sanctioning Procedure). Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=36879>

Decree 1076 of 2015 (Single Regulatory Decree for the Environment and Sustainable Development Sector), art. 2.2.2.3.9.2. Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=78153>

Resolution 1517 of 2012 (Manual for the Allocation of Compensation for Biodiversity Loss). Available at: https://archivos.minambiente.gov.co/images/BosquesBiodiversidadyServiciosEcosistemicos/pdf/gestion_en_biodiversidad/res_1517_310812.pdf

Law 599 of 2000 (Penal Code) – Title XI, Chapter III “Crimes Against Natural Resources and the Environment.” Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=6388>

Law 906 of 2004 (Code of Criminal Procedure), art. 351 (Pre-agreements and negotiations). Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=14787>

Are economic sanctions applied to companies or individuals trading in illicit gold?

1.0

Criterion 75

Justification

Environmental and mining authorities in Colombia can impose administrative sanctions independently of criminal proceedings. Law 1333 of 2009 establishes the autonomous environmental sanctions regime, as does Law 685 of 2001 through the CPACA (Code of Administrative Procedure and Administrative Litigation) and Law 1437 of 2011.

Sources

1. Law 1333 of 2009

- URL: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=36879>
 - Article 1: “This law establishes the environmental sanctioning procedure and dictates other provisions”
- #### 2. National Mining Agency (ANM) - Sanctioning Powers
- URL: <https://www.anm.gov.co/>
 - Powers to impose sanctions for violations of the mining regime
- #### 3. Environmental Authorities - Regional Autonomous Corporations (CARs)
- Sanctioning powers independent of the criminal process

Can environmental and mining authorities impose sanctions independently of a criminal process (administrative sanctions)?

1.0

Criterion 76

Justification

Colombia allows the application of administrative and criminal sanctions based on remote or technical evidence, including satellite imagery, aerial photographs, geospatial records, and data obtained by remote sensors, provided that such evidence is technically verifiable and does not violate fundamental rights.

In the area of environmental administration, Law 1333 of 2009, which regulates the environmental sanctioning procedure, expressly recognizes the validity of technical and scientific evidence. Article 21 empowers the competent authorities, such as the National Environmental Licensing Authority (ANLA) and the Regional Autonomous Corporations (CAR), to base their actions on suitable means of proof, including satellite imagery, aerial photographs, technical reports, or measurements obtained by specialized equipment, provided they are relevant and conducive to demonstrating the environmental infraction.

In the criminal sphere, the Code of Criminal Procedure (Law 906 of 2004) enshrines in its Article 373 the principle of freedom of proof, which allows the parties to prove the facts through any technical or scientific means that does not violate human rights or the legal order. The Office of the Attorney General of Colombia has used satellite imagery, drones, and GIS systems in investigations of environmental crimes such as the illegal exploitation of mineral deposits (Article 338 of the Criminal Code), a practice validated by the jurisprudence of the Council of State and the Supreme Court of Justice, which has recognized the full probative value of remote technical evidence.

Sources

Law 1333 of 2009 (Environmental Sanctioning Procedure), art. 21. Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=36879>

Law 906 of 2004 (Code of Criminal Procedure), art. 373 (Freedom of Evidence). Available at: <https://www.funcionpublica.gov.co/eva/gestornormativo/norma.php?i=14195>

IDEAM – Forest and Carbon Monitoring System (SMByC). Available at: <https://www.ideam.gov.co/>

Council of State – Jurisprudence on the validity of technical evidence in environmental sanctioning processes. Available at: <https://www.consejodeestado.gov.co/>

Amazon Mining Policy Scoreboard

Led by Amazon Conservation Association · amazonconservation.org

In collaboration with: Pulitzer Center · Rainforest Investigations Network · Earth Genome